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Newport Rules of Engagement (ROE) Handbook

The Newport ROE Handbook is published as a guide for the development of national and multinational rules of engagement for military operations. Its purpose is to assist users in the development of ROE for training, exercises, war games, and operations.

The views presented are those of the drafting team and do not necessarily represent the views of the U.S. Government, its components, or the Government or employer of drafting or review teams members.

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PREFACE

The U.S. Naval War College and other military and academic institutions, which have international student bodies, conduct unclassified and classified research, teaching, war games, and conferences. When the topic involves rules of engagement (ROE) and the participants represent multiple nations, meaningful discussion is problematic. Participants often arrive with either little knowledge of ROE, or with knowledge of a classified set of national ROE or coalition ROE that are not releasable to other nations or outside a coalition. Moreover, nations have different treaty obligations, different views on international law and national policy, and different views on the authority and responsibility of commanders. Additionally, most real-world ROE is classified. The goal of this publication is to facilitate ROE discussions by developing a realistic, comprehensive, and unclassified ROE Handbook that is usable by all nations for training, education, exercises, and war games. States that do not have national ROE may choose to use or adapt these ROE for real world operations.

The International Law Department (now the Stockton Center for International Law) at the U.S. Naval War College sponsored and directed the first edition of the ROE Handbook, which was subsequently published and printed by the International Institute for Humanitarian Law under agreement with the Naval War College. The ROE Handbook was drafted by legal experts from Australia, Canada, the United Kingdom, and the United States to incorporate best practices among these four States into the academic teaching and wargaming curriculum at the Naval War College and other institutions to ensure realistic and robust ROE play.

Use of the first edition of the Handbook over the past decade has resulted in several lessons learned, which are incorporated in this second edition. The Newport ROE Handbook builds on the successes of the first edition of the Handbook and the revision includes several significant changes as reflected in the summary of changes below.

The format of the Handbook is unique in that, in addition to ROE measures, it includes formats for a wide range of ROE-related matters, including ROE cards, warnings, responses to warnings, and other matters. The Newport ROE Handbook contemplates that, in a multinational force, higher authority in each nation will approve ROE for its forces and that each multinational partner will comply with national law and policy. Accordingly, the Handbook provides multiple, and often inconsistent, options for ROE measures. Consensus on each measure is not critical. Sharing ROE information with the multinational force commander, however, is essential for the success of combined operations. The Stockton Center for International Law requests that users of the Handbook contact the Stockton Center at StocktonCenter@us-nwc.edu, and the project coordinator, Dennis Mandsager, at dennis.mandsager@gmail.com, with constructive criticism, questions, and comments, as well as any lessons-learned from ROE exercises.



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ACKNOWLEDGEMENTS

The ROE Handbook project was initiated while I was serving on the faculty of the Naval War College's International Law Department. The Department extensively engaged in ROE teaching and war gaming with US military participants and multinational partners. ROE play was handicapped by the lack of an unclassified ROE set that could be shared with all participants. To have international participation in preparing a set of unclassified ROE, I engaged senior military leadership in Australia, Canada, and the United Kingdom. They provided members of the drafting team that prepared the first edition of the Handbook, which is now available in at least nine languages and is used extensively for ROE training, exercises, and war games. Please note that the Project Director and Drafting Team are responsible for content. Many reviewers have provided helpful recommendations for revisions; but those recommendations are not always consistent, and the views of the drafting team are not always in agreement. During my time on active duty and as a Naval War College professor, I have engaged in countless, heated debates on rules of engagement. Such is the nature of ROE.

I would like to express my appreciation to the following individuals and organizations who have made substantial contributions to the ROE Handbook project:

— Alan Cole, Phil Drew, and Rob McLaughlin, who have served as members of the Drafting Team for both editions of this Handbook. They provided many hours of writing, debating, negotiating, and compromising that resulted in publication of both editions of the Handbook.

— The Naval War College's Stockton Center for International Law and its Chairman and Stockton Professor James Kraska for providing many helpful comments and for publishing the Newport edition of the Handbook.

— Navy JAG Corps Captains, Richard J. (Jack) Grunawalt, William Harvey Dalton, Morris Sinor, and Ralph Thomas. Harvey, Jack, Morris, and Ralph served as extraordinary ROE mentors for countless military operators and lawyers from around the world, including me. I had the pleasure of working ROE issues and conducting ROE teaching with all these judge advocates over many years.

— The Review Team for reviewing Handbook drafts and providing many suggestions for improvements.

— Commander US Third Fleet and all Rim of the Pacific (RIMPAC) exercise participants for using the first edition of the Handbook and providing helpful inputs for updates. I am especially indebted to Fleet Judge Advocates Shane Cooper, Jonathan McLeod, Amy Larson, Elizabeth Josephson, and Jessica Pyle for their leadership of the RIMPAC Legal and ROE team and sharing RIMPAC ROE and lessons learned.

— The International Institute of Humanitarian Law (IIHL) for publishing the Sanremo edition of the Handbook and using the Handbook in many of its courses, which resulted in inputs for improvement.

— The International Committee of the Red Cross for its substantial financial contribution to IIHL that facilitated printing, translation, and distribution of the Sanremo edition of the Handbook and using it in multiple courses, which resulted in inputs for improvement.

— Countless users of the Handbook who have provided constructive comments for improvement.

Newport ROE Handbook

Updates to the Handbook will be published. Questions, constructive criticism, and other comments are welcome. Please send them to dennis.mandsager@gmail.com and StocktonCenter@usnwc.edu.

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SUMMARY OF CHANGES

Significant changes to the 2009 Sanremo ROE Handbook published by the International Institute of Humanitarian Law (IIHL) are summarized below:

Throughout the Handbook, the terms “nation” and “nations” have been replaced by “State” and “States.”

Throughout the Handbook, Cyber terminology has been revised to include selected definitions from a variety of national doctrine publications and other references.

The TABLE OF ROE has been moved to Annex B – COMPENDIUM OF ROE & DRAFTING CHECKLIST.

In paragraph 9:

- “Protection of Others” has been changed to “Defense of Others.”
- “*Collective self-defense*” has been added and defined.

In paragraph 15:

- Honor (chivalry) has been added as a LOAC principle.

In Appendix 1 to Annex A – Roe Drafting Process:

- The title has been changed from “Planning Procedures” to “ROE Drafting Process.”

In Appendix 3 to Annex A – Task-Specific Planning Considerations:

- Section 3.5, formerly titled “Maritime Interdiction Operation,” is now titled “*Maritime Security Operations*.” The guidance has been revised to include a wider range of operations.
- New section 3.6, titled “*Private Military and Security Company (PMSC)* Operations,” has been added.
- New section 3.7, titled “Armed Conflict,” has been added.
- New section 3.8, titled “*Interception of Civil Aircraft*,” has been added.

Appendix 4 to Annex A – Guidance on the Use of Force in *Self-Defense* and Appendix 5 to Annex A – Escalation of Force in Self-Defense have been combined into a single Appendix 4 – Guidance on the Use of Force in Self-Defense and on Escalation of Force

In Appendix 5 to Annex A – Targeting and ROE Within Armed Conflict:

- The Model Targeting Checklist has been revised.

In Annex B – Compendium of ROE:

- The ROE drafting guidance in paragraph 5.d regarding compulsory rules has been revised.

- The ROE Drafting Checklist has been revised.
- Rule 10 E regarding use of force in defense of property where there is a likelihood that destruction of, or damage to, that property will lead to an imminent threat to life of persons has been moved to Rule 12 E.
- Control of the use of *cyber attacks* in *self-defense* has been moved from Group 10-19 to Series 131.
- New ROE Rule 10 F regarding unit commander limitations on *individual self-defense* has been added.
- New ROE Rule 12 E regarding declaring individuals hostile outside of armed conflict situations has been added.
- New Series 14, titled “Use of Force in *Collective Self-Defense*,” has been added.
- Series 20 – Use of Force for Mission Accomplishment has been modified to require the inclusion of the specific nature of the mission for which the use of force is authorized.
- Series 24 – *Disabling Fire* has been changed to “*Disabling Fire* and *Non-disabling Fire*” with the addition of measures for *non-disabling fire*.
- The title of Series 25 – “Search and Detention of Persons” has been changed to “Search, Detention of Persons, Prevention of Escape, and Tactical Questioning of Persons” with additional measures added to the series.
- New Series 33, titled “Collateral Damage and Incidental Injury and Death,” has been added.
- The title of Group 70–79: “CARRYING OF WEAPONS” has been changed to “RESTRICTIONS ON CARRYING WEAPONS.” The Handbook now assumes that members of the *force* are authorized to carry weapons unless otherwise provided by a measure in Series 70. Accordingly, Measure 70 is no longer a compulsory rule.
- Group 80–89, formerly titled “LAND MINES, CLUSTER MUNITIONS, AND BOOBY TRAPS,” is now titled “USE OF WEAPON SYSTEMS, INCLUDING SPECIALLY REGULATED WEAPONS SYSTEMS.” ROE measures covering *semi-autonomous weapons systems*, and *autonomous weapon systems* have been added.
- New Series 86, titled “Use of Specified Weapon Systems,” has been added.
- Series 90, formerly titled “Maritime Law Enforcement,” is now titled “*Maritime Security Operations*,” and now includes a wider range of measures.
- Series 94, formerly titled “Suppression of *Piracy*,” has been removed. The measures have been moved to new Series 90.
- Group 110–119, formerly titled “ASSISTANCE TO CIVIL AUTHORITIES,” is now titled “LAW ENFORCEMENT.” Series 110 now includes measures for use of force to prevent the escape of prisoners and to accomplish an arrest or apprehension.

- Series 131, formerly titled *Computer Network Operations*,” is now titled “*Cyber Attacks*.” The series impacts only “*cyber attacks*” and not other *cyberspace operations*. Cyber terminology has been revised throughout the Handbook.
- Series 132, formerly titled “Psychological Operations,” is now titled “*Military Information Support Operations*.”

In Annex C – Formats for ROE and ROE-related materials:

- In Appendix 5 to Annex C, a model announcement for a *no-fly zone* has been added.

In Annex D – Glossary:

- Newly defined terms or revised definitions are provided for the following terms: *active cyber defense*, *autonomous weapon system*, *auxiliary vessel*, *cyber attack*, *cyber operation*, *cyberspace*, *cyberspace exploitation*, *cyberspace security*, *deadly force*, *declared hostile force*, *defensive cyberspace operations*, *directed energy weapon*, *electronic attack*, *human-supervised autonomous weapon system*, *harassment*, *information operations*, *interception of civil aircraft*, *maritime security operations*, *military deception*, *military information support operations*, *no-fly zone*, *non-deadly force*, *non-disabling fire*, *operations security*, *passive cyber defense*, *positive identification*, *precision-guided munitions*, *private military and security companies (PMSCs)*, *semi-autonomous weapon system*, *serious crime*, *sonic weapons*, and *warning signal*.
- The definition of “*deadly force*” has been revised to include not only force intended or likely to cause death, but also force intended or likely to cause serious injury.
- The definition of non-deadly force has been narrowed and now excludes all force intended or likely to cause death, or serious injury. The previous definition included “force not intended or likely to cause death, or serious injury resulting in death.”
- The definition of *serious crime* has been expanded to include abduction and armed robbery.

In Annex E – ROE Handbook After Action Reports:

- A form for submission of comments and suggested changes for the Handbook has been added.

PART I: INTRODUCTION

INTRODUCTION AND PURPOSE

1. The purpose of this Handbook is to assist in the drafting of rules of engagement (ROE) and related legal and operational guidance for use in training, exercises, war games, and operations. The Handbook is not a manual on the Law of Armed Conflict. It considers the requirement to identify and manage the respective legal and policy positions of States participating in a multinational operation and promotes an understanding of national ROE policies. It also sets out suggested ROE for certain environments and tasks, as well as procedures for approving and implementing ROE in single service, *joint*, or multinational operations. The contents of the Handbook are based on the personal experiences of the drafting team and the reviewers in the application of ROE in a wide variety of unclassified exercises, war games, and real-world operations.

STRUCTURE OF THE HANDBOOK

2. This Handbook adopts the following structure:
- a. Parts I to VI introduce the Handbook, the key legal considerations impacting upon the use of force, the concept of *self-defense*, the policy factors that influence the development of ROE, the ROE methodology adopted in this Handbook, and ROE procedures.
 - b. Annex A provides guidance on the planning and drafting of ROE, specific guidance on ROE for selected operational environments and operational tasks, guidance on *hostile intent* and the escalation of force in *self-defense*, and information on the relationship between targeting and ROE.
 - c. Annex B provides a menu of ROE provisions that may be tailored as necessary to reflect national policies and to accomplish various missions.
 - d. Annex C and its Appendices provides model ROE and ROE-related documents.
 - e. Annex D provides definitions for a number of terms used in this Handbook. These terms are italicized wherever they appear in the text (e.g., *opposed boarding*), thus indicating that reference should be made to the definition in Annex D.

DEFINITION AND STATUS

3. This Handbook adopts the following definition and status:
- a. For the purposes of this Handbook, *ROE* are rules, issued by competent authorities, to military forces and associated groups and forces, and to other organized armed groups, that regulate the use of force and other activities that may be considered to be provocative. They assist in the delineation of the circumstances and limitations within which forces may be employed to

achieve their objectives. ROE appear in a variety of forms in national military doctrines, including execute orders, operation orders, deployment orders, operational plans, or standing directives. Whatever their form, they provide authorization for and/or limits on, among other things, the use of force, the positioning and posturing of forces, and the employment of certain specific capabilities. In some States, ROE have the status of guidance; in other States, ROE are lawful commands. (**Note:** While ROE guidance appears in a variety of documents in different national doctrines, the Handbook drafters prefer that all ROE guidance be included in the operation plan (OPLAN) or operations order (OPORDER) as reflected in paragraph 30.)

For some States ROE do not govern the use of force in *individual* and *unit self-defense*. For other States, ROE include guidance on the use of force in *self-defense*. This Handbook contemplates the use of ROE measures to clarify the authority to use force in *self-defense*. This is particularly useful in multinational operations where national laws and policies on *self-defense* may differ.

ROE are not used to assign missions or tasks, nor are they used to give tactical instructions. Missions and tasks are assigned through operations orders and similar instruments of command and control.

- b. Some sections of the Handbook are suitable for use by groups other than military forces, such as *private military and security companies (PMSCs)* and their employees (see section 3.7 of Annex A), civilian government employees engaged in law enforcement, security, or other duties that may involve use of force, as well as non-State actor organized armed groups.
- c. Some States use the term “rules for use of force” or “RUF” to describe the rules for use of force by *private military and security companies (PMSCs)* or by personnel engaged in law enforcement or security duties. This Handbook uses the term “ROE” to describe the rules for use of force in all situations, with the exception of *PMSCs*, for which we use the term “RUF.”
- d. For some States, the Handbook measures may be suitable for domestic operations. For other States, domestic law restrictions regarding the use of force may render this Handbook as unsuitable for domestic operations.
- e. Guidance on use of force today is often found in sources other than ROE. Those sources include, but are not limited to, execute orders (EXORDS), fragmentary operation orders (FRA-GOS), special instructions (SPINS), collateral damage estimation methodologies, doctrine, tactical directives, tactics, techniques, and procedures publications, etc. The Handbook drafters recommend that, if feasible, all guidance on the use of force be included as part of the implemented ROE or, as a minimum, be referenced in the implemented ROE.

APPLICABLE LAW AND POLICY

4. International Law. The conduct of military operations is governed by international law, including the law of armed conflict (LOAC) (also referred to as the “law of war,” or “international humanitarian law”), applicable international human rights law, and the U.N. Charter. States and individuals are obliged to comply with LOAC. All States are obliged to train their forces to comply with LOAC and with other provisions of international law that impact upon military operations. All other organizations participating in combat operations are encouraged to do so. This Handbook is intended to facilitate the creation of ROE to provide for the judicious use of force in compliance with international law. While all parties to an armed conflict are bound by customary international law, it is acknowledged that States may have different treaty obligations from others, as well as differing interpretations and/or application of both

treaty and customary international law. In multinational operations these differences need to be identified and factored into the planning and conduct of operations.

5. National Laws. The armed forces of each State must comply with their own national laws. Similarly, organized armed groups are bound by the domestic laws of the States in which they are operating. For example, the national laws of some States may restrict the ability of forces to use force, in particular *deadly force*, to protect others or to defend property. Some States limit use of *deadly force* in defense of property, to response to *hostile acts* only and not *hostile intent*. Accordingly, some States may issue restrictions or amplifying instructions to supplement the ROE for multinational operations. To the greatest extent possible, such restrictions or instructions should be shared with multinational partners to ensure that commanders are aware of any such limitations to ensure that they are able to employ forces in an efficient and effective manner.

6. National Policy. In the same way that States may have different legal positions on certain issues, the planning and conduct of military operations must consider differing national policy positions. Some military options, available under both international and national law, may not comply with national policy intent, either generally or with respect to a specific operation. For example, in some circumstances some States may limit permissible levels of incidental injury or collateral damage to levels that are less than those required under LOAC, while others may not allow their military to conduct law enforcement activities. This Handbook allows for the creation of ROE that provide for the conduct of operations in compliance with national laws and policy.

7. Multinational Operations. Commanders of multinational forces should work to establish a common and coherent ROE framework that accounts for national differences. Policy and legal differences can lead to different ROE among the members of a multinational force, which can be a source of friction in conducting operations. Problems of this sort are best resolved through negotiations rather than through a process that leads to ROE that reflect the lowest common denominator. If there are irreconcilable differences in ROE, they need to be identified, shared with commanders, and factored into the planning and conduct of operations. Those differences are often referred to as “caveats.” The ROE Matrix in Appendix 3 to Annex C is an example of a method for summarizing those differences for *force* commanders and their staffs.

PART II: SELF-DEFENSE

8. Self-Defense. International law and the domestic laws of most, if not all, States recognize a right of *self-defense*, which is the use of force to defend against *attack (hostile act)* or imminent *attack (hostile intent)*. *Self-defense* is available in all situations, including armed conflict. National laws differ on the definition and content of the right of self-defense. As a consequence, individuals and units will exercise this right in accordance with their respective domestic law. For some States, *self-defense* is not addressed in ROE because the right to exercise *self-defense* is considered to be an inherent right that cannot be restricted. This Handbook encourages the inclusion of *self-defense* measures in ROE profiles to ensure a common understanding of the rules applicable to all parties to whom the ROE profile applies.

Hostile Act and Hostile Intent. For the purposes of this Handbook, the right to use force in *self-defense* arises in response to a *hostile act (attack)* and/or demonstrated *hostile intent* (threat of imminent *attack*). Appendix 4 to Annex A provides guidance on the determination of *hostile intent* and the magnitude and duration of force that may be employed in *self-defense*. *Higher authority* may provide mission-specific guidance on

indicators of *hostile act* and *hostile intent*. *Higher authority* or the *force* commander may also provide guidance on how to respond to *harassment* that falls short of an *attack* (*hostile act*).

For some States, and for the North Atlantic Treaty Organization (NATO), the terms “*hostile act*” and “*hostile intent*” are related to mission-accomplishment, rather than *self-defense*. (**Note:** NATO ROE, for example, do not regulate *self-defense*, but leave it to each Troop Contributing Nation to define *self-defense* in accordance with national law and policy.) This Handbook has adopted what the drafters view as the more generally accepted view, meaning that *hostile act* and *hostile intent* are associated with *self-defense*. In any event, the Handbook is intended for use by all States.

9. *Categories of Self-Defense*: For the purposes of this Handbook, the right of *self-defense* is considered on five levels.

- a. *Individual self-defense*. This refers to the right of an individual to defend himself or herself against *hostile acts* or *hostile intent*. Some States permit commanders to limit *individual self-defense* when an individual is assigned to and acting as a part of a unit (See Annex B, rule 10 F).
- b. *Unit self-defense*. Unit commanders have the right to defend their unit and other units from their State against *hostile acts* or *hostile intent*. (**Note:** This Handbook uses different definitions of “*hostile act*” and “*hostile intent*” than those used in NATO ROE. The Handbook uses definitions consistent with UN and most national ROE systems.). For some States, the concept of *unit self-defense* is both a right and an obligation; whereas for others the concept is only a right. (See Annex B, Appendix 1, paragraph 3.) Some States permit the right of *unit self-defense* to be limited by orders from *higher authority*. (See Annex B, rule 11 A.) *Unit self-defense* may be extended to units and individuals from other States when authorized by the applicable ROE. (See Annex B, series 11.) *Unit self-defense* is an operational concept. It is a collective application of *individual self-defense*, defense of others, and *collective self-defense*.
- c. *Defense of Others*. This refers to the defense of specified persons (who are not part of the *Force*) and their property against *hostile acts* or *hostile intent*.
- d. *National Self-defense*. As recognized in Article 51 of the United Nations Charter, and in customary international law, *national self-defense* refers to the right of a State to defend itself, its nationals and their property against *hostile acts* and *hostile intent*. (See Annex B, series 13). Decisions on whether or not *national self-defense* will be invoked are retained at the highest levels of governmental or executive authority.
- e. *Collective Self-Defense*. As recognized in Article 51 of the United Nations Charter, and in customary international law, *collective self-defense* refers to the right of a State to use force to defend another State, its persons, its forces, and/or its property in response to an armed *attack* or imminent armed *attack*. ROE should specify the State in whose *collective self-defense* the use of force is permitted. For most States, decisions on whether or not that State will respond in *collective self-defense* are retained at the highest levels of governmental or executive authority. *Collective self-defense* is often, but not necessarily, based on mutual defense treaties.

10. *Use of Force in Self-Defense*. Subject to any limitations promulgated in ROE (either series 10 or 11), all necessary and proportional means and actions may be used in *self-defense*. For some States, the right of *individual self-defense* and the right to use force in defense of others is inherent and cannot be limited beyond what their national law permits. For other States, it is possible for the right of *individual self-defense* and the right to use force in defense of others to be limited by the commander when the individual is

assigned to and acting as a part of a unit. (See Annex B, rule 10 F.). In drafting multinational ROE, it is essential that each national perspective on this issue be understood.

The use of force in *self-defense* is subject to the principles of necessity and proportionate response. Necessity exists when one faces a *hostile act* or *hostile intent*. The use of force is generally authorized so long as the *hostile act* or *hostile intent* continues. The use of force must be proportionate, which means that the nature, duration, and scope of force used should not exceed that which is required to *neutralize* the threat. However, a decisive response is permitted, and the use of force in *self-defense* may exceed the means and intensity of the *hostile act* or *hostile intent*. (**Note:** The concept of “proportionate response” in *self-defense* should not be confused with the concept of “proportionality” in LOAC, which is summarized as follows: An *attack* against *military objectives* expected to cause incidental injury to civilians and damage to civilian objects, that is excessive in relation to the concrete and direct military advantage anticipated, is unlawful.)

Where time and circumstances permit, military forces should warn the threatening entity, or otherwise attempt to de-escalate the situation, to give the entity an opportunity to withdraw or cease its threatening actions. Military forces are permitted to use force in *self-defense* only if non-forceful alternatives to prevent or deter the *attack (hostile act)* or imminent *attack (hostile intent)*:

- a. Have been exhausted,
- b. Are unavailable,
- c. Are deemed insufficient to defend forces in those circumstances, or
- d. Are not reasonable alternatives due to time and/or space considerations.

If appropriate as a matter of national law and/or policy, consideration should be given to including the following language in ROE implementation when required by national law or policy:

“Nothing in these ROE negates the right of *individual self-defense*. Nothing in these ROE negates a commander’s right and obligation to take all necessary and appropriate action using all authorized weapon systems in *unit self-defense* of his or her unit and other *Force* units in the vicinity.”

If a commander has the authority to limit *individual self-defense* under domestic law, consideration should be given to including the following language in ROE implementation:

“When individuals are assigned and acting as part of a unit, unit commanders may limit *individual self-defense* by members of their unit.” (See also ROE measure 10 F.)

11. Pursuit. *Self-defense, unit self-defense, defense of others, and national self-defense* include the authority to pursue and engage forces that continue to demonstrate *hostile intent*. ROE may limit the extent to which pursuit is authorized, depending upon the military and political situation. Pursuit in *self-defense* should be distinguished from “hot pursuit,” which, for the purposes of this Handbook, is a measure that applies only in a maritime law enforcement context and is defined in customary international law and in Article 111 of the 1982 Law of the Sea Convention.

12. Relationship between *Self-Defense* and Mission Accomplishment ROE. Individuals and units have the right to defend against *attack (hostile act)* and imminent *attack (hostile intent)*. As a general rule, ROE issued for a mission do not limit this right. Because national laws and policies differ, there will not always

be consistency in a multinational force as to when the right to use force in *self-defense* ends and the use of force for mission accomplishment begins. Inconsistencies should be clarified in the planning process.

13. Defense of *Auxiliary Vessels*. In merchant vessels the master has the ultimate responsibility for the safety of the ship, including *unit self-defense*. (See section 3.7 of Appendix 3 to Annex A for a discussion of the relationship between the master and a private security company.) In the case of *auxiliary vessels*, some States assign responsibility for *self-defense* to a military security detachment. In that situation, the security detachment will have authority to use the weapons systems within its control to defend the unit and will consult with the master, as feasible.

PART III: THE USE OF FORCE DURING OPERATIONS

14. Broadly speaking, during peacetime, the use of force is permitted in *self-defense*, in the exercise of law enforcement authority, and to accomplish operations or missions specifically authorized by a higher national authority or other governing body, such as the U.N. Security Council.

- a. It is universally recognized that individuals and units have a right to defend themselves against *attack (hostile act)* or imminent *attack (hostile intent)*. Nevertheless, because national laws and policies differ with respect to the application of *self-defense* to military operations, Series 10, 11, 12, and 13 of Annex B provide specific ROE intended to clarify the extent of the authorizations granted for the application of force in *self-defense*. For example, some States permit commanders to restrict the exercise of the right of *individual self-defense* and/or *unit self-defense*, while others do not.
- b. Where the use of force is not justified by *self-defense* but is nonetheless necessary for accomplishment of an assigned military mission, force may be exercised within the constraints of the relevant national and international law. Series 20 to 140 of Annex B provide measures for mission accomplishment.
- c. For most States, *deadly force* can be used against persons posing an imminent threat of death or serious injury or to prevent a *serious crime*. National views on other circumstances in which *deadly force* is permitted vary widely among States. The Handbook provides multiple ROE measures, the use of which will depend upon national laws and policies.

15. In periods of heightened tension Commanders may wish to either reduce the risk of accidentally provoking armed conflict; or, on the other hand, may intentionally attempt to provoke a reaction from an adversary. During such periods, and until armed conflict breaks out, the law of armed conflict does not generally apply.

16. During armed conflict commanders generally are authorized to engage the enemy in accordance with LOAC and applicable rules of engagement.

- a. The extent to which different aspects of LOAC might apply depends in the first instance on whether a conflict is an international or non-international armed conflict. Generally, the political leadership of a State determines the characterization of an armed conflict to be applied by its armed forces. This characterization is based on a legal analysis of the factual situation. When planning operations and crafting ROE for multinational operations, senior commanders and

their legal advisers need to be aware of how other States characterize the conflict, as those characterizations will affect which LOAC framework is applied by those States.

- b. In international armed conflict situations, only combatants, organized armed groups, and civilians directly participating in hostilities (unless *hors de combat*), and *military objectives* may be the object of *attack*.
- c. In non-international armed conflict situations, attacking members of organized armed groups (State or non-State) and civilians directly participating in hostilities (unless *hors de combat*) and *military objectives* is permitted under international law. This is without prejudice to the applicable domestic law.
- d. Commanders, planners, and legal advisers must recognize the fact that not all States are parties to the same LOAC treaties. Further, even where States are parties to the same treaties, they may not share the same interpretations of the law embodied in those treaties. However, ROE language is generally crafted to reflect a number of recurring LOAC principles concerning the use of force:
 - i. Military necessity – The principle whereby a belligerent has the right to apply any measures that are required to bring about the successful conclusion of a military operation and which are not forbidden by LOAC. It forbids the intentional destruction or seizure of the enemy's property unless such destruction or seizure is imperatively demanded by the necessities of war. Military necessity does not authorize acts otherwise prohibited by LOAC.
 - ii. Distinction – The principle of distinction requires that military force be directed against combatants and *military objectives*, that combatants be distinguished from civilians and non-combatants, and that *military objectives* be distinguished from civilian objects. ROE may implement this principle by including a requirement for “*positive identification*” (PID) of a target prior to engagement.
 - iii. Proportionality – The principle of proportionality requires that the anticipated injuries to and loss of life of civilians and damage to civilian property (“collateral damage”) incidental to *attacks* must not be excessive in relation to the concrete and direct military advantage expected to be gained from an *attack*.
 - iv. Unnecessary suffering (humanity) – This principle requires a military force to minimize unnecessary suffering. It applies to the legality of weapons and ammunition as well as to the methods in which weapons and ammunition are used.
 - v. Precautions – In the conduct of military operations, constant care shall be taken to spare the civilian population, individual civilians, and civilian objects.
 - vi. Honor (or chivalry) – The principle of honor reflects the premise that military forces are a common class of professionals who have undertaken to comport themselves honorably. Honor demands a certain mutual respect between opposing military forces. The principle requires complying with the law of armed conflict in good faith and refraining from taking advantage of an opponent's adherence to the law by falsely claiming the law's protections.

PART IV: POLICY DIRECTION FROM HIGHER AUTHORITY TO MILITARY COMMANDERS

17. *Higher authority* within a State or in a multinational *force* will provide direction on the goals to be achieved when undertaking a military mission. This may include direction on force posture as well as authorizations or limitations on the scope of action a commander may take to accomplish the mission. Policy direction from government, including conclusions from legal analysis, may limit the operational freedom of military commanders and prevent them taking all the actions available to them under the law. Policy direction does not however provide a legal authority for use of force in the conduct of operations where such use of force is outside the law.

18. The ROE authorized for a mission will typically include specific instructions regarding the use of force. In addition to *self-defense*, ROE will therefore generally reflect multiple components, including political guidance from higher authorities, the tactical considerations of the specific mission, and the appropriate legal regime under which the operation is being conducted, including LOAC when applicable. Succinct and clear rules are essential.

19. In some cases, political leadership may provide guidance on policy aims and objectives. Such guidance should be explained in plain language, and supporting ROE should reflect this guidance within the context of the mission. Such guidance may change as missions mature. In such cases, ROE changes will need to be made and promulgated by ROE authorization (ROEAUTH) messages.

PART V: OPERATIONAL DIRECTION FROM THE FORCE COMMANDER TO THE FORCE

20. The Commander of the *Force* will provide operational direction to the *Force*, often through an Operation Order (OPORDER). The OPORDER will be divided into a number of sections, which will cover the following matters:

- a. Situation (including the size and composition of enemy and friendly forces).
- b. Mission (a clear statement of the purpose of the operation.)
- c. Execution (including Commander's Intent, which is critical to the drafting of ROE).
- d. Sustainment.
- e. Command and Control.

21. Those responsible for drafting ROE will draw heavily upon the OPLAN or OPORDER and, in particular, the Commander's Intent, which will indicate what activities the friendly forces are likely to be asked to carry out.

PART VI: DRAFTING METHODOLOGY

22. Some States adopt “permissive” ROE systems, which generally provide that, unless a specific weapon or tactic requires *higher authority* approval or has been restricted by an ROE measure, commanders may use any lawful weapon or tactic available for mission accomplishment. The ROE in this Handbook are drafted as a series of prohibitions, restrictions, and permissions set out in the Compendium of Rules at Annex B. As a general rule, this Handbook adopts a “restrictive” approach to authorization. This means that, unless otherwise specified in an ROE Group or Series or permitted by another directive, if an ROE measure is not addressed in the ROE, commanders must assume that they have no authority (beyond *individual self-defense* and *unit self-defense*) to carry out that action. A limited number of measures are not restrictive in the sense that ROE measures are not required unless restrictions are imposed. The measures that are not restrictive include: Series 58, related to Freedom of Navigation (FON) in Areas of Excessive Maritime Claims, which assumes that freedom of navigation and overflight rights may be exercised unless specifically restricted (**Note:** “excessive maritime claims” include, but are not limited to, unlawful restrictions in respect of the exercise of freedoms of navigation and overflight e.g., high seas freedoms, innocent passage, transit passage, and *assistance entry*); Series 70, relating to the carriage of weapons, which is based upon an assumption that the *Force* will always have a right to carry weapons, unless restricted; and Series 133, *Military deception*, which provides that deception is permitted unless restricted by a rule in the series. Nevertheless, in the case of a series that is not restrictive, measures that either authorize or prohibit actions are included to facilitate clarity if deemed necessary by users of the Handbook.

23. Annex B provides a menu of ROE options that may be tailored to a specific mission. Model ROE for an operation are contained in Appendix 1 to Annex C. The nature of the operation(s) may dictate that planners or commanders propose rules not listed in this Handbook. In such cases, the “spare” rules in the relevant series or a new series may be employed. When creating ‘spare’ rules, commanders must ensure that such measures comply both with their national policies and all applicable laws.

24. When the term “SPECIFY” is included in the ROE measure, the term refers to a need to add specific parameters that focus the application of the rule. Such parameters might be in relation to ranges, weapon types, specific nationalities, or certain actions or conduct. Accordingly, where this term appears, specific words must be inserted into the ROE measure to clarify and tailor the meaning of the provision.

25. Where necessary, additional information on the application of a rule may be given as Amplification (abbreviated as “AMPL”) beneath the rule itself. Examples of matters included in amplification include:

- a. That a rule is retained by a *higher authority* (See paragraph 28).
- b. That a rule is dormant (See paragraph 28).
- c. That use of a particular weapon or tactic is specifically allowed or prohibited, including circumstances relevant to such determination.

26. When ROE authorize the use of *deadly force*, this authorizes the use of all lesser degrees of force permitted by law, up to and including *deadly force*. The actual tactics, techniques and procedures for applying force or utilizing *non-deadly force* will vary based upon factors such as environment, weapons systems available, the prevailing threat, and applicable law. The tactical employment of approved ROE is a matter of command judgment.

27. Specific rules, referred to as “retained” ROE, may be withheld for activation by a specified command authority. This means that the rule can be used only upon specific positive approval by the specified commander. Such rules are therefore “dormant” until activation. Approval to activate the rule will generally be sought and granted by the quickest appropriate means and confirmed formally. Furthermore, such approval may be on a case-by-case basis, or under specified caveats, such as period of time, geographical area, or mission. Retention of a rule is indicated by amplification to the rule that states the approval level. The format adopted in this Handbook is as follows:

AMPL: This rule is retained by (SPECIFY level of authority, e.g., *Force Commander*).

Additionally, specific rules, referred to as “dormant” ROE, may be retained for activation upon the occurrence of a specific threshold event (for example, a triggering act or conduct by the adversary). When drafting this form of dormant rule, it is similarly important to provide detail as to the triggering circumstance or event in an AMPL to the rule (E.g., AMPL: This rule is authorized if the enemy moves in force into the territorial sea or land territory of State Alpha.)

28. While commanders may restrict the use of issued ROE measures, they cannot authorize their forces to exceed them. Commanders at all levels who are uncertain about the suitability of ROE must immediately request a change or clarification. Additionally, if the ROE are considered unclear or insufficient, commanders must immediately seek clarification from *higher authority*.

PART VII: ROE PROCEDURES

29. Approval. ROE are authorized either by national authorities or by the governing body of an international organization in accordance with its procedures and with national agreement (e.g., UN). ROE are usually developed and staffed as part of the operational planning process, either parallel to or as part of the development of the relevant operation plan (OPLAN) or operation order (OPORDER). They may be included in these documents or published separately by message or otherwise. The OPLAN or OPORDER will also set out the geographical area (Area of Operations) to which the ROE apply. Some States include their request for mission specific ROE directly in the draft OPORDER.

30. Review. ROE must be continuously reviewed to ensure that they are clear and lawful, that they are sufficient to address the requirements of the mission, that they provide the commander with the necessary powers to deal effectively with the threat, and that they do not authorize actions beyond what is necessary. Message formats for requesting ROE (ROEREQ), for authorizing ROE (ROEAUTH), and for implementing ROE (ROEIMP) are provided in Appendix 2 to Annex C.

31. Security. While ROE for training and exercises often may be unclassified, the ROE for actual operations are generally classified at the same level as the OPLAN or OPORDER.

GUIDANCE ON PLANNING AND STAFFING

1. This Annex provides recommended procedures for the development, staffing, and publication of ROE.
2. The following appendices are included:
 - Appendix 1 ROE Drafting Process
 - Appendix 2 Environment-Specific Guidance
 - Appendix 3 Task-Specific Planning Considerations
 - Appendix 4 Guidance on Use of Force in Self-Defense and on Escalation of Force
 - Appendix 5 Targeting and ROE

ROE DRAFTING PROCESS

1. The development and implementation of effective ROE is critical to mission accomplishment. Proposed ROE should be developed as part of each proposed course of action (COA). They should be reviewed and refined throughout follow-on operational planning. Final selection of the COA for mission accomplishment may be influenced by the ROE required to implement that COA. This Appendix provides suggested guidelines for incorporating ROE development into operational planning. Procedures vary among States. In some cases, the first draft of an ROE profile is provided by *higher authority* (top-down approach). In other cases, subordinate commands are tasked with development of the first draft (bottom-up approach).
2. ROE are authorized by national authorities (individually or collectively) or sometimes by the governing body of a multinational force operating under the umbrella of an international organization (e.g., UN, NATO, Africa Union, or European Union). ROE development should take place as an integral part of the operational planning process.
3. The establishment of an ROE Planning Cell should be considered for any operation. This Cell should be led by operational staffs and include legal advisers, policy advisers, and officers with specialist expertise in land, air, maritime, special operations, *outer space*, and *cyberspace operations*, as appropriate. In multinational operations, early engagement with other multinational force States is essential, especially if the operation is not under the umbrella of an international organization that will develop ROE for all troop contributing nations.
4. Responsibility for drafting ROE usually sits with current operations or plans and policy staff; but this varies among States. In the opinion of the drafters of this Handbook, the legal advisor should play a significant role in assisting with ROE development and should serve as a principal assistant to the commander and the staff that drafts ROE. The drafting team should include additional members with expertise appropriate to the mission.
5. It is the role of legal advisers to ensure that ROE are consistent with the relevant laws—and as appropriate, the relevant policies and mandates—applying to the *Force*. Therefore, legal advisers will need to analyze the legal basis for the mission and the legal framework that will regulate the application of force, considering the characterization of the conflict. This includes identifying the nature of the operation, including whether it is an armed conflict and, if so, the nature of the armed conflict (international or non-international).
6. Once ROE have been drafted and approved (see the ROE DRAFTING CHECK-LIST at Annex B), they are provided to the *Force*. ROE will normally be contained within or linked to an operational planning document or order. In addition, guidance on the use of force may also be contained or referred to in other sections of planning documents or orders. Where this occurs, particular care must be taken to ensure that different sections containing ROE guidance remain harmonized, as ROE may be adjusted over the course of the mission.
7. Consideration should be given to creating ROE products (cards, briefs, etc.) that summarize key ROE provisions for distribution to and training of members of the *Force*. This is done to ensure that the current iteration of the ROE is known and understood by all who are using them. Additionally, in multinational operations, an ROE matrix that summarizes the ROE of each multinational partner can be a useful tool (see Appendix 3 to Annex C).
8. ROE should be assessed continually by tactical, operational, and strategic level commanders in order to ensure that appropriate adjustments can be made as missions or phases of the operation develop, as the

intelligence picture changes (in particular, threats to tactical level units), and, where applicable, as the enemy's tactics, techniques, and procedures evolve. New measures should be requested or implemented as necessary to ensure the ROE remain consistent with the mission, the operational situation (especially the threat), political and policy guidance, and the law. Proposing or implementing changes is achieved through ROEREQ, ROEAUTH, and ROEIMP procedures (see Appendix 2 to Annex C). If and when ROE are unclear, clarification should be sought from higher headquarters.

9. Scenario based ROE training will ensure that ROE are understood and applied properly by all units and members of the *Force*. Multinational *Force* commanders should meet with subordinate commanders upon joining the *Force*, and periodically thereafter, to ensure a common understanding of ROE.

ENVIRONMENT-SPECIFIC GUIDANCE

(**Note:** Every ROE profile is to include a compulsory rule from each of series 10, 11, and 12. See paragraph 5.d.i of Annex B.)

2.1 Land Operations

a. Introduction

All land operations take place on the territory of States, with or without the permission of the sovereign government.

b. Legal Considerations

The principal legal considerations when drafting ROE for land operations are:

- i. The legal basis for presence and activities, including use of force, in the sovereign territory of another State, and, in particular, whether the military activity has the consent of the State(s) in which it is taking place or whether the *Force* enjoys immunity from jurisdiction as an invading force.
- ii. Where the State has given consent, whether the law of the State in which the *Force* is present applies, and, in particular, the extent of any *Status of Forces Agreement (SOFA)*, Memorandum of Understanding (MOU), or other international arrangement.
- iii. Whether there is a legal basis to arrest or detain.

c. Applicable ROE

In addition to the compulsory rules as set out at paragraph 5.d.i of Annex B, the following ROE should be considered:

- Protection of Freedom of Movement of Persons (Series 21)
- *Warning Shots* (Series 23)
- Search, Detention, Prevention of Escape, and *Tactical Questioning* of Persons (Series 25)
- Neutrals (Series 32)
- Use of Force to Protect Property (Series 40)
- Inspection, Detention, Seizure, and Destruction of Property (Series 42)
- Geographic Positioning of *Force* Units and Cross-Border Incursions (Series 50)
- Relative Positioning of *Force* Units (Series 53)

- Operations in the Presence of a Potential Adversary (Series 54)
- Diversions (Series 55)
- Use of Obstacles and Barriers (Series 56)
- Zones (Series 57)
- *Harassment* (Series 61)
- Sensors and *Illumination* (Series 63)
- Use of Weapon Systems, Including Specially Regulated Weapons Systems (Group 80–89)
- Law Enforcement and Assistance to Civil Authorities (Group 110–119)
- Crowd and Riot Control (Group 120–129)
- *Information Operations* (Group 130–132)

2.2 Maritime Operations

a. Introduction

Maritime operations are conducted in areas that are subject to the territorial sovereignty of States (*national waters* and *national airspace*) and areas not subject to the territorial sovereignty of any State (*international waters* and *international airspace*).

b. Legal Considerations

The principal legal considerations when drafting ROE for maritime operations are:

- i. The sea area where operations are to take place and the legal regime that applies, including navigation and overflight rights, the duties and rights of the coastal and flag States, and the rights and duties of neutrals or other non-participants.
- ii. The legal basis for the operation, including any specific legal authority for conducting operations in *national waters* or for conducting *maritime security operations* or LOAC- based maritime combat operations.
- iii. The principle of sovereign immunity.
- iv. National views on legality of baselines, on characterization of ocean areas (national waters, international waters, international straits, etc.), and on navigation and overflight rights in the area of operations.

c. Applicable ROE

In addition to the compulsory rules as set out at paragraph 5.d.i of Annex B, the following ROE should be considered (**Note:** for armed conflict situations in the maritime environment, refer also to 3.8 Armed Conflict):

- Prevention of Interference with Ships and Aircraft (Series 22)
- *Warning Shots* (Series 23)
- *Disabling Fire* and *Non-disabling Fire* (Series 24)
- Search, Detention, Prevention of Escape, and Tactical Questioning of Persons (Series 25)
- Neutrals (Series 32)
- Inspection, Detention, Seizure, and Destruction of Property (Series 42)
- Geographic Positioning of *Force* Units and Cross-Border Incursions (Series 50)
- Aerial Reconnaissance (Series 52)
- Relative Positioning of *Force* Units (Series 53)
- Freedom of Navigation in Areas of Excessive Maritime Claims (Series 58)
- Diversions (Series 55)
- Zones (Series 57)
- Freedom of Navigation in Areas of Excessive Maritime Claims (Series 58)
- *Harassment* (Series 61)
- Sensors and *Illumination* (Series 63)
- Use of *Semi-autonomous Weapons* (Series 83)
- Use of *Autonomous Weapons* (Series 84)
- Use of Specified Weapon Systems (Series 85)
- *Maritime Security Operations* (Series 90)
- Submarine Contacts (Series 91)
- *Naval Mines* (Series 92)
- Boarding (Series 93)
- *Electronic Warfare* (Series 130)

- *Cyber Attacks* (Series 131)
- *Military Information Support Operations* (Series 132)

2.3 Air Operations

a. Introduction

Air operations take place in both *national airspace* and *international airspace*. Therefore, aircraft and crews may be subject to different legal regimes during operations.

b. Legal Considerations

The principal legal considerations when drafting ROE for air operations are:

- i. The area where operations take place (including the staging area and transit routes) and legal regimes that apply, including the right of overflight, basing agreements, and whether the airspace is belligerent or neutral airspace.
- ii. The interception and use of force against civil aircraft or any other specifically protected aircraft, such as medical aircraft.

c. Applicable ROE

In addition to the compulsory rules as set out at paragraph 5.d.i of Annex B, the following ROE should be considered:

- Prevention of Interference with Ships and Aircraft (Series 22)
- *Warning Shots* (Series 23)
- *Disabling Fire* and *Non-disabling Fire* (Series 63)
- Identification of Targets (Series 31)
- Neutrals (Series 32)
- Inspection, Detention, Seizure, and Destruction of Property (Series 42)
- Geographic Positioning of *Force* Units and Cross-Border Incursions (Series 50)
- Relative Positioning of *Force* Units (Series 53)
- Diversions (Series 55)
- Zones (Series 57)
- *Harassment* (Series 61)

- *Shadowing and Marking* (Series 62)
- *Sensors and Illumination* (Series 63)
- *Submarine Contacts* (Series 91)
- *Use of Air-to-Surface Munitions* (Series 100)
- *Use of Air-to-Subsurface Munitions* (Series 101)
- *Air-to-Air Engagements* (Series 102)
- *Electronic Warfare* (Series 130)

2.4 *Outer Space Operations*

a. Introduction

Outer space is that area above the earth that is beyond the sovereignty of any State. All States have equal rights of access and use of *outer space*.

b. Legal Considerations

The principal legal considerations when drafting ROE for space operations are:

- i. Use of the moon and other celestial bodies is limited exclusively to peaceful purposes. The establishment of military bases, installations, and fortifications, the testing of any type of weapons, and the conduct of military maneuvers on celestial bodies is forbidden. It is prohibited to place in orbit around the Earth, install on the moon or any other celestial body, or otherwise station in *outer space*, nuclear or any other weapons of mass destruction.
- ii. No State may claim sovereignty over any portion of *outer space*.
- iii. The use of satellites for surveillance, communication, and navigation for military purposes, overflight by missiles, and the stationing of conventional weapons on satellites are not prohibited activities.
- iv. The determination of exactly where *national airspace* ends and *outer space* begins is not yet settled.

c. Applicable ROE

In addition to the compulsory rules as set out at paragraph 5.d.i of Annex B, the following ROE should be considered:

- *Electronic Warfare* (Series 130)

- *Outer Space Operations* (Group 140–149)

2.5 *Cyberspace Operations*

a. Introduction

Cyberspace is a man-made environment. It is dependent on the physical domains of air, land, maritime, and space. *Cyberspace operations* are conducted in and through *cyberspace*. They also rely on networked, stand-alone, and platform-embedded information technology infrastructure, in addition to the data that resides on and is transmitted through these components, to enable military operations in a man-made domain.

Cyberspace operations, which include both kinetic and non-kinetic operations, enable force projection. In many situations there is no need to establish a physical presence in foreign territory where an objective may be located.

Making the determination of *hostile act* and *hostile intent* may be difficult. Attribution of *cyberspace operations* is challenging.

b. Legal Considerations

The principal legal considerations when drafting ROE for *cyberspace operations* are as follows:

- i. International consensus has not yet emerged on many aspects regarding how international law governs *cyberspace operations*. Domestic civil and criminal laws and national policies also vary widely on the legal aspects of *cyberspace operations*. Further, there is an absence of consensus interpretation of how international agreements, such as the UN Charter, impact *cyber operations*. Domestic law prohibitions and international law prohibitions are not necessarily consistent.
- ii. If *cyberspace operations* threaten or cause death, serious injury, and/or significant damage to property, they would constitute *hostile intent* or a *hostile act*. There is, however, not yet a consensus regarding whether operations falling short of that level, such as interference with functionality or data, meet the “damage” or “destruction” definition of the term “*cyber attack*.” Accordingly, *self-defense* measures should clarify whether interference with functionality or data by an adversary is included within the definition of “*cyber attack*.”
- iii. Wherever *cyberspace operations* take place, they are conducted by persons or entities that are subject to the jurisdiction of States.

c. Applicable ROE

In addition to the compulsory rules as set out at paragraph 5.d.i of Annex B, the following ROE should be considered:

- *Cyber Attacks* (Series 131)
- *Military Information Support Operations* (Series 132)

TASK-SPECIFIC PLANNING CONSIDERATIONS

(Note: Every ROE profile is to include a compulsory rule from each of series 10, 11, and 12. See paragraph 5.d.i of Annex B.)

3.1 *Peace Operations*

a. Introduction

Peace Operations involve a mixture of military and police forces and diplomatic and humanitarian agencies, and are designed to achieve, restore, and/or uphold international peace and security. The ROE for the mission will be tailored to the specific mandate and the situation on the ground. Multiple States may provide participating units. These operations may be led by the U.N., other international organizations, or States with different notions of *self-defense* and ROE. State units may arrive with varying national laws and policies and different views on *self-defense* and ROE.

b. Legal Considerations

The principal legal considerations when drafting ROE are:

- i. The legal basis for presence in the sovereign territory (including *national waters* and *national airspace*) of another State, in particular, whether the military activity has the consent of the State(s) in which it is taking place or whether the *Force* enjoys immunity from the jurisdiction of the host State.
- ii. Where the legal basis for presence includes a UNSC Resolution, whether that resolution is under Chapter VI or Chapter VII.
- iii. Whether any Chapter VII resolution gives the authority to use “all necessary means” and whether the basis for the use of force is restricted to *self-defense*, which may include the defense of designated persons.
- iv. The extent of any *Status of Forces Agreement (SOFA)*, Memorandum of Understanding (MOU) or other international arrangement.

c. Applicable ROE

In addition to the compulsory rules as set out at paragraph 5.d.i of Annex B, the following ROE should be considered:

- Protection of Freedom of Movement of Persons (Series 21)
- *Warning Shots* (Series 23)
- Search, Detention Prevention of Escape, and *Tactical Questioning* of Persons (Series 25)
- Neutrals (in armed conflict situations) (Series 32)
- Use of Force to Protect Property (Series 40)

- Inspection, Detention, Seizure, and Destruction of *Property* (Series 42)
- Geographic Positioning of *Force* Units and Cross-Border Incursions (Series 50)
- Relative Positioning of *Force* Units (Series 53)
- Diversions (Series 55)
- Use of Obstacles and Barriers (Series 56)
- Zones (Series 57)
- Sensors and *Illumination* (Series 63)
- Law Enforcement and Assistance to Civil Authorities (Group 110–119)
- Crowd and Riot Control (Group 120–129)
- *Information Operations* (Group 130–139)

3.2 *Non-Combatant Evacuation Operations (NEO)*

a. Introduction

Non-Combatant Evacuation Operations (NEO) are intended to evacuate nationals and selected others from threatening circumstances in a foreign or *host nation*. *NEOs* are fundamentally defensive in nature.

b. Legal Considerations

The principal legal considerations when drafting ROE are:

- i. The legal basis for presence (E.g., self-defense, consent, etc.) in the sovereign territory (including *national waters* and *national airspace*) of the State from which the NEO is taking place; in particular whether the NEO is conducted with or without *host nation* consent and, accordingly, whether the context is permissive, uncertain, or hostile.
- ii. The extent of any *Status of Forces Agreement (SOFA)*, Memorandum of Understanding (MOU) or other international arrangement or immunity from jurisdiction of the host State.

c. Applicable ROE

In addition to the compulsory rules as set out at paragraph 5.d.i of Annex B, the following ROE should be considered:

- Protection of Freedom of Movement of Persons (Series 21)
- *Warning Shots* (Series 23)

- Search, Detention, Prevention of Escape, and *Tactical Questioning* of Persons (Series 25)
- Inspection, Detention, Seizure, and Destruction of Property (Series 42)
- Geographic Positioning of *Force* Units and Cross-Border Incursions (Series 50)
- Relative Positioning of *Force* Units (Series 53)
- Diversions (Series 55)
- Use of Obstacles and Barriers (Series 56)
- Sensors and *Illumination* (Series 63)
- Use of *Semi-Autonomous Weapons Systems* (Series 83)
- Use of *Autonomous Weapons Systems* (Series 84)
- Law Enforcement and Assistance to Civil Authorities (Group 110–119)
- Crowd and Riot Control (Group 120–129)
- *Information Operations* (Group 130–139)

3.3 Humanitarian Assistance/Disaster Relief (HA/DR)

a. Introduction

Humanitarian Assistance/Disaster Relief (HA/DR) operations are generally short-term programs to alleviate suffering caused by natural or man-made disasters in other States. Such operations, with the consent of the *host nation*, complement the efforts of local civil authorities or other agencies. Notwithstanding the potential for a poor security environment, not all States necessarily implement ROE for these kinds of operations. However, this Handbook contemplates use of ROE for all operations.

b. Legal Considerations

The principal legal considerations when drafting ROE are:

- i. The security environment in the disaster zone.
- ii. Whether the carriage of weapons is necessary and whether the *host nation* has given consent to do so.
- iii. The applicability of any *Status of Forces Agreement (SOFA)*, Memorandum of Understanding (MOU), or other international arrangement.
- iv. The specifics of the consent of the *host nation* to conduct operations, including operational restraints imposed by the *host nation*.

c. Applicable ROE

In addition to the compulsory rules as set out at paragraph 5.d.i of Annex B, the following ROE should be considered:

- Protection of Freedom of Movement of Persons (Series 21)
- Use of Obstacles and Barriers (Series 56)
- Geographic Positioning of *Force* Units and Cross-Border Incursions (Series 50)
- Restrictions on the Carrying of Weapons (Series 70)
- Law Enforcement and Assistance to Civil Authorities (Group 110–119)
- Crowd and Riot Control (Group 120–129)

3.4 Assistance to Civil Authorities (ACA)

a. Introduction

The provision of assistance to civil authorities involves domestic operations in which military forces perform functions that are normally the responsibility of other government agencies within their own State. Most often, ACA operations are initiated as a result of an event or emergency in which the specialized equipment, capabilities, or personnel of the armed forces are required. Such situations may include large, planned events, emergencies (such as forest fires, floods, or other natural disasters), or any other similar operation in which military assistance may be needed and in which the use of force is not normally contemplated. In these ACA operations military forces usually are operationally integrated with, and in support of the government authorities that are managing the situation. In such cases the supported governmental department usually remains in over-all control of the operation.

ACA operations also occur when the military of a State is called upon by its government to assist in any case in which a riot or other disturbance of the peace occurs, or is about to occur, and the civil authorities decide that specialist resources or capabilities within the military are required in response. Not all States have legislation enabling this authority.

The military may take a role in maintaining or restoring public order. The military only becomes involved after direction from civil authorities; and, after resolution of the situation, control generally must be returned to the appropriate representatives of the civil authorities—generally police—as quickly as possible.

In ACA operations, military forces, remaining subordinate to civil authorities, have assumed the responsibilities for restoring peace and good order. In such cases, military forces may be required to use force against the civilian population. Exceptional training and responsible control of the use of force are essential.

Examples of assistance to civilian authorities may include:

- hazardous waste clean-up
- counter-drug and other law enforcement activities
- forest fire fighting
- flood control
- response to natural and man-made disaster (see section 3.3)
- search and rescue
- non-armed assistance to law authority
- security for special events, such as international sporting events, conferences, and high-level political meetings
- riot control or other civil disturbances
- prison disturbances
- suppression of armed insurrection
- counter-terrorist and anti-terrorist operations
- counter-hijacking operations
- hostage rescue

b. Legal Considerations

The principal legal considerations when drafting ROE are:

- i. The nature of the emergency, riot or disturbance and the specific domestic legal authority for military intervention or action.
- ii. The scope and duration of powers granted by the government to the military.
- iii. The extent, if any, to which civilian and other government police, or other law and order authorities remain involved in the operation.
- iv. Whether the carriage of personal weapons is necessary.
- v. Whether a power of arrest, detention, or other police competencies is required.
- vi. Whether domestic law or policy restricts the type or use of weapons.

c. Applicable ROE

In addition to the compulsory rules as set out at paragraph 5.d.i of Annex B, the following ROE should be considered:

- Use of Force in Mission Accomplishment (Series 20)
- Warning Shots (Series 23)
- Use of Force to Secure the Release of Persons (Series 26)
- Use of Force to Protect Property (Series 40)
- Protection and Recovery of Vital Mission Essential, or Other Designated Property (Series 41)
- Geographic Positioning of *Force* Units and Cross-Border Incursions (Series 50)
- Use of Obstacles and Barriers (Series 56)
- Sensors and *Illumination* (Series 63)
- Restrictions on Carrying Weapons (Series 70)
- Use of Specified Weapon Systems (Series 85)
- Law Enforcement and Assistance to Civil Authorities (Group 110–119)
- Crowd and Riot Control (Group 120–129)
- *Electronic Warfare* (Series 130)
- *Military Information Support Operations* (Series 132)

3.5 ***Maritime Security Operations***

a. Introduction

Maritime security operations involve the assertion of jurisdiction by warships, military aircraft, or other duly authorized government vessels or aircraft over other vessels and/or aircraft of other States. *Maritime security operations* include all maritime operations that do not rely upon LOAC-based authorizations. (**Note:** for armed conflict situations in the maritime environment, refer to 3.8 Armed Conflict.) Examples include:

- Maritime law enforcement operations in relation to national jurisdiction concerning fisheries and other marine resources, environmental protection, and fiscal, immigration, customs, and sanitary matters

- Maritime operations in relation to other matters over which the relevant State has been granted jurisdiction under both international and national law (such as piracy and maritime law enforcement)
- *Maritime interdiction operations*, including UNSC sanctions enforcement operations
- Maritime operations based on *self-defense* in situations other than armed conflict

Each participating State will have a national position on what they are permitted to do (both as a matter of law and policy) in relation to both their own State's vessels and aircraft and other States' vessels and aircraft within:

- Their own *national waters*
- Their contiguous zone, EEZ, and continental shelf
- In *international waters* and *international airspace*

b. Legal Considerations

The principal legal considerations when drafting ROE are:

- The sea area where operations are to take place and the legal regime that applies, including navigation and overflight rights, the duties and rights of the coastal and flag States, and the rights and duties of neutrals or other non-participants.
- The legal basis for the operation, including any specific legal authority for conducting operations in *national waters* and/or *national airspace*, for conducting *maritime interdiction operations* and/or maritime law enforcement operations, and for use of force, detention, and arrest, if applicable.
- The principle of sovereign immunity.
- Different national legal and policy positions on the right to visit on the basis of a master's consent and on the characterization of ocean areas (*national waters*, *international waters*, international strait, etc.).

c. Applicable ROE

In addition to the compulsory rules as set out at paragraph 5.d.i of Annex B, the following ROE should be considered:

- Protection of Freedom of Movement of Persons (Series 21)
- Prevention of Interference with Ships and Aircraft (Series 22)
- *Warning Shots* (Series 23)
- *Disabling Fire* and *Non-disabling Fire* (Series 24) (Used most likely against surface platforms in the maritime environment)

- Search, Prevention of Escape, Detention, and *Tactical Questioning* of Persons (Series 25)
- Use of Force to Secure the Release of Persons (Series 26)
- Inspection, Seizure, and Destruction of Property (Series 42)
- Geographic Positioning of *Force* Units and Cross-Border Incursions (Series 50)
- Aerial Reconnaissance (Series 52)
- Relative Positioning of *Force* Units (Series 53)
- Diversions (Series 55)
- Zones (Series 57)
- Freedom of Navigation in areas of Excessive Maritime Claims (Series 58)
- Warnings, *Harassment*, *Shadowing*, and *Illumination* (Group 60–69)
- Restrictions on Carrying Weapons (Series 70)
- *Maritime Security Operations* (Series 90)
- *Naval Mines* (Series 92)
- Boardings (Series 93)
- Law Enforcement and Assistance to Civil Authorities (Group 110–119)
- *Electronic Warfare* (Series 130)

3.6 *Private Military and Security Company (PMSC) Operations*

(Note: This Handbook does not address use of force policies and procedures for *PMSCs* working on behalf of civilian commercial or not for profit organizations; nor does it address *PMSCs* or similar commercial entities when formally integrated into the armed forces or police of a State.)

a. Introduction

Governments, International Organizations, and Multinational Forces often contract with (*PMSCs*) to undertake certain tasks and roles where use of force by *PMSC* staff may be contemplated. Such roles include armed guarding and protection of persons and objects, such as installation defense, access control and security, convoy protection, and vessel protection, and maintenance and partial control of weapons, intelligence, surveillance, and reconnaissance (ISR) systems. When *PMSCs* are operating under the control of the military, it may be appropriate for military commanders to issue specific Rules for the Use of Force to the *PMSC* personnel.

b. Legal Considerations

The principal legal considerations when drafting ROE are:

- i. *PMSC* contractors and their employees are not members of the military or police/law enforcement agencies. As such they will generally not have access to the rights, responsibilities, powers, and protections of military and law enforcement personnel (such as combatant immunity for military personnel and powers of arrest for law enforcement personnel). *PMSC* employees use of force will generally be restricted to *self-defense*, defense of others, and the protection of property. Some States may, on occasion, authorize *PMSC* personnel to use law enforcement powers for specific tasks. Such authorizations must accord with domestic law.
- ii. *PMSC* employee rights to use force differ significantly from and are more limited than those available to military and law enforcement members of the *Force*. In essence, *PMSC* employees will generally only have a right to use force in *self-defense* or defense of others. Further, the precise legal content of such authorizations will be subject to a broader array of jurisdictional factors including host State or flag State law, each contractor's own national law, and the law of both the contracting State and the *PMSC*'s State of registration or incorporation.
- iii. The use of force by *PMSCs* and their employees may or may not be covered by any *Status of Forces Agreement (SOFA)* or similar arrangement and they may or may not be afforded the same or some other level of jurisdictional immunity from *host nation law*. This will affect a wide range of issues such as exposure to investigation and prosecution in relation to use of force, authority to carry weapons, and so on.
- iv. In some circumstances, the path by which a State, International organization, or Multinational Force may impose requirements upon a *PMSC* and its employees in relation to use of force may be contractual rather than via the assertion of national criminal or disciplinary jurisdiction (which is the normal accountability and responsibility path for military and law enforcement elements of any *Force*). However, in general, *PMSC* accountability includes contract law, in addition to accountability under local domestic law, extraterritorial application of domestic law, and LOAC. In some States, *PMSCs* may also be accountable under military discipline.
- v. Masters of merchant vessels have the ultimate responsibility for safety of the ship. The embarked *PMSC* team leader must keep the master or the master's representative informed concerning the use of force plan and the intention to use force. The master, however, may order the team leader to cease firing, subject to the *PMSC* team's right of *individual self-defense*.
- vi. *PMSCs* are not contracted to engage in combat operations; therefore, the term "ROE," generally is not used in *PMSC* operations. Rules applicable to *PMSCs* generally are referred to as rules for the use of force (RUF) when issued by a State or military authority, or as guidance on the use of force when issued by non-state organizations or corporations. RUF typically set out the relationship between the *PMSC* and other authorities (such as local law enforcement agents, vessel masters, and so on). In other cases, *PMSCs* will operate under a use of force policy that expresses limits on and controls over use of force by employees and contractors as a matter of self-regulation. *PMSC*-developed use of force policy may be accepted by a State or international organization in lieu of a RUF. In this case, the contracting authority may include additional language in the contract that recognizes the use of force policy and that adds additional requirements, such as those described for a RUF. The *PMSC* may

seek to utilize such tools for expressing limits on and controls over use of force by their employees and contractors as a matter of self-regulation.

- c. Applicable ROE (**Note:** most States will describe these measures as “RUF” as opposed to “ROE.” RUF will normally be accompanied by orders or official instructions which describe the procedures for authorizing *PMSCs* to be armed as well as what kinds of weapons and ammunition are authorized or prohibited.)

Mandatory measures (applicable in all operations):

- Use of Force in *Individual Self-Defense* (Series 10)
- Use of Force in the Defense of Others (Series 12)
- *Warning Shots* (Series 23)
- Search, Detention, Prevention of Escape, and *Tactical Questioning* of Persons (Series 25)
- Use of Force to Protect Property (Series 40)
- *Warnings* (Series 60)

Possible additional measures depending on the operational environment and task:

- Protection of Freedom of Movement of Persons (Series 21)
- Prevention of Interference with Ships and Aircraft (Series 22)
- Protection and Recovery of Vital, Mission Essential, or Other Designated Property (Series 41)
- Inspection, Seizure, and Destruction of Property (Series 42)
- Ground Reconnaissance (Series 51)
- Aerial Reconnaissance (Series 52)
- Restrictions on Carrying Weapons (Series 70)
- Use of Force in Law Enforcement (Series 110)
- Search, Detention and Arrest of Persons (Series 111)
- Treatment of Detained and Arrested Persons (Series 112)
- Crowd and Riot Control (Series 120)

3.7 Armed Conflict

a. Introduction

Armed conflict refers to a period during which the activities of military forces and/or other parties to a conflict are governed by the law of armed conflict or LOAC, which is also known as the law of war and international humanitarian law). LOAC distinguishes between two types of armed conflict, namely:

- international armed conflicts, (between two or more States), and
- non-international armed conflicts, (between government forces and nongovernmental armed groups, or between such groups only).

In accordance with international jurisprudence there are separate thresholds for the existence of International Armed Conflicts (IAC) and Non-International Armed Conflicts (NIAC):

- An [international] armed conflict exists whenever there is a resort to armed force between States.
- A NIAC exists when there is “protracted armed violence between governmental authorities and organized armed groups or between such groups within a State.

b. Legal Considerations

The principal legal considerations when drafting ROE are:

- i. The body of law known as “the Law of Armed Conflict” is made up of law which is generally accepted by States to apply to all armed conflicts (known as customary international law) and treaty law, which applies only to States that are parties to a treaty. Those drafting ROE need to take advice from legal advisers concerning which laws are applicable to their forces and those of their allies.
- ii. Armed conflicts may be either international or non-international. Some of the Law of Armed Conflict is applicable to both while some are specific to one or the other.
- iii. A determination must be made as to who is a lawful target in accordance with LOAC, including any insurgent or other irregular forces, and civilians directly participating in hostilities.

c. Applicable ROE

In addition to the compulsory rules as set out at paragraph 5.d.i of Annex B, and due to the broad character of armed conflict, all ROE series should be considered. The following ROE are particularly relevant in armed conflict situations.

- Engagement of *Military Objectives* and *Hostile Forces* (Series 30)
- Identification of Targets (Series 31)
- Neutrals (Series 32)
- Use of Land Mines, (*Series 80*)

- Use of *Cluster Munitions* (Series 81)
- Use of Booby Traps (Series 82)
- Use of *Semi-Autonomous Weapons Systems* (Series 83)
- Use of *Autonomous Weapons Systems* (Series 84)
- Submarine Contacts (Series 91)
- *Naval Mines* (Series 92)
- *Boarding* (Series 93)
- Naval Interdiction Operations During Armed Conflict (Series 94)
- Air Operations (Group 100-109)
- *Information Operations* (Group 130-139)
- *Outer Space* Operations (Group 140–149)

3.8 *Interception of Civil Aircraft*

a. Introduction

Interception of civil aircraft operations involve situations in which military or other State aircraft may be required to intercept, divert and or destroy civilian aircraft and their passengers and crew. Conduct of such missions necessitates the balancing of the freedom of navigation and overflight of the civil aircraft and the safety of the civilians onboard against *self-defense*, and protection of others who may be threatened by the civil aircraft, which, for example, may have been hijacked by terrorists.

b. Legal Considerations

The principal legal considerations when drafting ROE are:

- i. Unless they are being used to support military operations for the purposes of the Law of Armed Conflict, civil aircraft are civilian objects and may not be attacked during armed conflict unless demonstrating hostile intent or committing a *hostile act*. **Note: National military LOAC manuals or other guidance should be consulted to determine whether the level of support to military operations is sufficient to permit *attacks* on civil aircraft.**
- ii. Under the Chicago Convention and customary international law, military aircraft are required to operate with “due regard” for the safety of civil air traffic. In the event of armed conflict, national emergency, situations requiring *self-defense*, or similar military contingencies, military aircraft commanders shall take measures to minimize hazards to civil air traffic.

- iii. *Interception of civil aircraft* is governed by the International Civil Aviation Organization's "Manual Concerning Interception of Civil Aircraft" Doc 9433-AN/926, or by State regulations that apply, modify or supplement ICAO guidance.
 - iv. A determination must be made as to whether or not an international armed conflict situation exists. Only military aircraft (and not other State aircraft) may exercise belligerent rights, such as visit and search and capture of aircraft and their contents, during periods of international armed conflict.
 - v. Authority to intercept will vary depending on whether the aircraft is in *international airspace*, *national airspace*, or neutral airspace.
 - vi. A determination should be made as to whether there are any published zones in place (via notice to airman (NOTAM) or other notification system).
 - vii. The nationality of the intercepted aircraft (same as intercepting aircraft or another nationality) may affect the authority of the State conducting the interception since, as a general rule, the flag State will have additional authorities for boarding.
 - viii. If a civil aircraft is demonstrating *hostile intent* or engaging in a *hostile act*, a determination will need to be made as how to respond and whether or not to use force against it.
 - ix. The legal basis for interception and the legal basis for interference (such as diversion or use of force) are different. The extent of the authority to use force will depend on the legal basis for the use of force.
- c. Applicable ROE

In addition to the compulsory rules as set out at paragraph 5.d.i of Annex B, the following ROE should be considered:

- Use of Force in *National Self-defense* (Series 13)
- Warning Shots (Series 23)
- Identification of Targets (Series 31)
- Geographic Positioning of *Force* Units and Cross-Border Incursions (Series 50)
- Diversions (Series 55)
- Sensors and *Illumination* (Series 63)
- Air-to-Air Engagements (Series 102)

GUIDANCE ON THE USE OF FORCE IN SELF-DEFENSE AND ON ESCALATION OF FORCE (EOF)

4.1 Introduction. The right to use force in *self-defense* arises either when there has been a *hostile act* and/or when there is demonstrated *hostile intent*. Some States permit the right of *individual self-defense* and *unit self-defense* to be limited by a *Force* commander (see Series 10 and 11 in Annex B). When time and circumstances permit, *escalation of force* (EOF) measures should be employed. However, it must be remembered on all occasions that ROE and EOF procedures do not limit the right of *self-defense* (unless national law permits *higher authority* to impose such limits); nor are they required to be applied to the use of force under LOAC. Subject to any limitations promulgated in ROE (either series 10 or 11), all necessary and proportional means and actions may be used in *self-defense*. Under international law, forces engaged in armed conflict are not subject to the rules of *self-defense* or EOF procedures in relation to opposing forces. Rather, during armed conflict, the use of force against those forces is governed by LOAC and ROE. The use of force in armed conflict situations may, however, be restricted for policy reasons as reflected in ROE.

It is important to recall that during an armed conflict, armed forces are not subject to the peacetime rules of self-defense or escalation of force procedures with respect to enemy forces

4.2 Ascertaining Hostile Intent. *Hostile intent* is the threat of imminent *hostile act*. In determining whether an entity is demonstrating *hostile intent*, individuals and unit commanders will use their best judgment and consider all facts and circumstances, including available intelligence, political and military factors, indications and warnings, and all other relevant information. A determination of *hostile intent* is based on the existence of an identifiable threat comprising a capability and intention to conduct a *hostile act*. For some *States*, “imminent” refers to close proximity in time. For other *States*, an “imminent attack” does not necessarily mean one that is immediate or instantaneous.

4.3 Hostile Intent and Harassment. It is important to consider the context of acts that are being assessed as potential *hostile intent* indicators. The line between *harassment* and *hostile intent* is highly contextual. In some cases, an act – such as shining a high intensity light into the bridge of a vessel – may constitute a *hostile intent* indicator (for example, in situations of high and escalating tension). In other cases – such as situations of low tension or routine freedom of navigation assertions, the same act will constitute *harassment*, but will not rise to the level of a *hostile intent* indicator. In assessing the appropriateness of action to be taken in response to *harassment*, it is important to consider the same contextual factors, to ensure that a response does not actually rise to the level of a *hostile act* or demonstration of *hostile intent*, which could then be used by the other party as grounds for claiming use of force in *self-defense*.

4.4 Indicators of Hostile Intent. There is no exclusive checklist of indicators that will conclusively determine *hostile intent*. In some cases, indicators can be factored into a more specific determination of the existence of *hostile intent* and included in ROE measures by *higher authority*. The following are examples of actions that, individually or in combination, may, depending on the circumstances, demonstrate *hostile intent*:

- a. Aiming, arming, or directing weapons.
- b. Adopting an *attack* profile.
- c. Closing within weapon release range.
- d. Illuminating with radar or laser designators.
- e. Passing targeting information.

- f. Laying or preparing to lay *naval mines*.
- g. Employing active radar jamming.
- h. Failing to respond to the proactive measures listed below in 4.5.

4.5 Proactive Measures that may Assist in Ascertaining *Hostile Intent*. In addition to the above indicators of *hostile intent*, time and circumstances permitting, forces should take proactive measures to assist in determining the intent of an opposing entity or group. In some cases, the adversary's responses to the measures can be factored into a more specific determination of the existence of *hostile intent* and included in ROE measures by *higher authority*. Examples of such measures include:

- a. Verbal query (see Appendix 6 to Annex C).
- b. Verbal warning (see Appendix 6 to Annex C).
- c. Visual signals.
- d. Noise signals.
- e. Physical barriers.
- f. Changing course and speed to determine if the opposing entity is continuing to maintain an *attack* profile.
- g. Illuminating the opposing entity with fire control radar.
- h. Firing *warning shots*, which are ROE-enabled as applicable).

4.6 Escalation of force. Individuals using force in *self-defense* should always use the least harmful option that time and circumstances permit (for example, warnings or *warning shots*). Indeed, one principal purpose of *escalation of force* is to create operational time and space in the hope that there will be no need to escalate to use of *deadly force* in *self-defense*. Use of force options must be read within their context on every occasion – that is, the assessment as to what the minimum first response is to be made on a case-by-case basis. Use of an excessive option, where a less harmful option could reasonably have achieved the aim of neutralizing or removing the threat in the circumstances encountered, may have legal consequences for individual users of force. Depending on the circumstances, *deadly force* may be the first and only option. Lesser means may be inadequate.

4.7 Use of force options. A variety of options for use of force may be available in any given situation. If warranted by the circumstances, *deadly force* may have to be the first option. Other options may include:

- a. Presence.
- b. Verbal and visual warnings, including display of weapons, establishment of barriers, and keep-clear zones.
- c. Use of force without a non-lethal or lethal weapon.
- e. Non-lethal weapons (such as batons, high pressure water hoses, or sonic devices).

- f. Lethal weapons (such as firearms).

4.7 General Considerations. There are several general considerations that should be considered in relation to *EOF* policy, options, and training:

- a. *Force* preparation should include scenario-based training in EOF situations that members of the *Force* are likely to encounter during the operation, such as checkpoint or access control operations.
- b. Use of proactive measures to determine *hostile intent* (see paragraph 4.5 of Appendix 4 to Annex A) and EOF measures are similar and may serve the same purpose.

TARGETING AND ROE WITHIN ARMED CONFLICT

5.1 Although the right to use force in *self-defense* always exists, in an armed conflict the use of force against an enemy is regulated by LOAC. Within an armed conflict, targeting is the process of selecting and prioritizing objectives and matching the appropriate response (tactics and weapons) to them, taking account of operational requirements and capabilities, applicable ROE, and LOAC. Targeting includes both deliberate and time-sensitive targeting.

5.2 The relationship between ROE and targeting is summarized as follows:

- a. Forces may target only those *military objectives* permitted to be targeted in the relevant ROE.
- b. ROE may impose policy and/or operational restrictions on targeting that are more restrictive than the requirements of the LOAC.
- c. ROE must never permit targeting that is not consistent with LOAC.

5.3 Targeting Directives for a mission may set out limitations such as *restricted target lists* and *no-strike lists*. Additionally, commanders may be restricted from taking certain actions by their ROE.

5.4 In order to conduct targeting for any mission, planners, often referred to as a “targeting cell”, are likely to need ROE for mission accomplishment (Series 20) that permit the use of force, up to and including *deadly force*. These ROE measures will reflect the effects that the commander intends to achieve, which must be updated throughout a given operation. If there are no permissions under Series 20, then LOAC-governed *attacks* cannot be conducted.

5.5 ROE will reflect the LOAC requirement that under no condition will an *attack* be permitted where the expected incidental injury or death of civilians and collateral damage to civilian objects is excessive in relation to the concrete and direct military advantage anticipated to be gained by the *attack*. In some cases, *higher authority* or a commander (through an operation order, statement of commander’s intent, or ROE) may direct that more restrictive standards be applied. (See Series 33.) For example, a commander may direct that more restrictive standards be applied. For example, a commander may:

- a. prohibit *attacks* in which any collateral damage is a foreseeable consequence;
- b. prohibit *attacks* where any incidental injury or death where incidental injury or death of specified classes of persons (such as children) or a specified number of persons is expected;
- c. prohibit *attacks* where otherwise permissible collateral damage to specified civilian objects is expected; or
- d. direct that selected *military objectives* be disabled rather than destroyed.

The above restrictive standards, as a general rule, would be applicable in mission accomplishment situations and not in *self-defense* situations. (**Note:** See ROE Series 33.)

TARGETING CHECKLIST EXAMPLE

This checklist is offered as a means of explaining the concepts involved in the targeting process.

1	Do you have authority under ROE / Orders to conduct <i>attack</i> ? If yes, proceed to 2. If no, DO NOT ATTACK
2	Is the Target a <i>Military Objective</i> ? If yes, proceed to 3. If no, DO NOT ATTACK
3	Is the objective on a <i>No Strike List</i> ? If no, proceed to 4. If yes, DO NOT ATTACK
4	Is the objective on a <i>Restricted Target List</i> ? If no, proceed to 5. If yes, DO NOT ATTACK without approval of <i>Force Commander</i> or <i>Higher Authority</i> .
5	Is the <i>attack</i> expected to cause incidental loss of civilian life, injury to civilians, damage to civilian objects, or a combination thereof (i.e., collateral damage)? If yes, proceed to 6. If no, proceed to 11.
6	Have all feasible precautions in the choice of means and methods of <i>attack</i> with a view to avoiding, and in any event to minimizing, incidental loss or civilian life, injury to civilians and damage to civilian objects been taken? If yes, proceed to 7. If no, address precautions and then reassess 8.
7	Is there an alternative military target available that achieves the necessary and similar military advantage, but less risk of collateral damage? If no, proceed to 8. If yes, return to 1 for new target.
8	Is the <i>attack</i> expected to cause incidental loss of civilian life, injury to civilians, damage to civilian objects, or a combination thereof, which would be excessive in relation to the concrete and direct military advantage anticipated? If yes, DO NOT ATTACK If no, proceed to step 9.
9	Do your targeting directive and ROE require that the anticipated collateral damage be approved by a specified commander? If no, proceed to 10. If yes, seek approval and proceed to 10 upon approval.
10	Do circumstances permit an effective advance warning being given prior to <i>attacks</i> that may affect the civilian population? If yes, issue warning and proceed to 11. If no, proceed to 11.
11	ATTACK PERMITTED — BUT CONTINUE TO MONITOR. IF CIRCUMSTANCES CHANGE THERE IS A DUTY TO REASSESS ATTACK

COMPENDIUM OF ROE & DRAFTING CHECKLIST

This Appendix includes a TABLE OF ROE that lists the ROE Series headings found in the COMPENDIUM, a COMPENDIUM OF ROE that contains the specific rules that are to be used for drafting ROE, and a ROE DRAFTING CHECKLIST.

TABLE OF ROE

GROUP 10–19: USE OF FORCE IN THE DEFENSE OF SELF AND OTHERS

Series

10	Use of Force in <i>Individual Self-Defense</i>
11	Use of Force in <i>Unit Self-Defense</i>
12	Use of Force for the Defense of Others
13	Use of Force in <i>National Self-Defense</i>
14	Use of Force in <i>Collective Self-Defense</i>
15–19	SPARE

GROUP 20–29: MISSION ACCOMPLISHMENT

Series

20	Use of Force for Mission Accomplishment
21	Protection of Freedom of Movement of Persons
22	Prevention of Interference with Ships and Aircraft
23	<i>Warning Shots</i>
24	<i>Disabling Fire</i> and <i>Non-disabling Fire</i>
25	Search, Detention of Persons, Prevention of Escape, and <i>Tactical Questioning</i> of Persons
26	Use of Force to Secure the Release of Persons
27	<i>Indirect Fire (Unobserved Indirect Fire and Observed Indirect Fire)</i>

28–29 SPARE

GROUP 30–39: TARGETING IN ARMED CONFLICT

Series

30 Engagement of *Military Objectives* and *Hostile Forces*

31 Identification of Targets

32 Neutrals

33–39 SPARE

GROUP 40–49: OPERATIONS RELATED TO PROPERTY

Series

40 Use of Force to Protect Property

41 Protection of Vital, Mission Essential, or Other Designated Property

42 Inspection, Detention, Seizure, and Destruction of Property

43–49 SPARE

GROUP 50–59: GEOGRAPHIC POSITIONING

Series

50 Geographic Positioning of *Force* Units and Cross-Border Incursions

51 Ground Reconnaissance

52 Aerial Reconnaissance

53 Relative Positioning of *Force* Units

54 Operations in the Presence of a Potential Adversary

55 Diversions

56 Use of Obstacles and Barriers

57 Zones

- 58 Freedom of Navigation in Areas of Excessive Maritime Claims
- 59 SPARE

GROUP 60–69: WARNINGS, *HARASSMENT*, *SHADOWING*, AND *ILLUMINATION*

Series

- 60 Warnings
- 61 *Harassment*
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GROUP 70–79: RESTRICTIONS ON CARRYING WEAPONS DURING OPERATIONS OTHER THAN ARMED CONFLICT

Series

- 70 Restrictions on Carrying Weapons
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GROUP 80–89: USE OF WEAPON SYSTEMS, INCLUDING SPECIALLY REGULATED WEAPONS

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- 82 Use of Booby Traps
- 83 Use of *Semi-Autonomous Weapons Systems*
- 84 Use of *Autonomous Weapons System*
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90	<i>Maritime Security Operations</i>
91	Submarine Contacts
92	<i>Naval Mines</i>
93	Boarding
94	Naval Interdiction Operations During Armed Conflict
95–99	SPARE

GROUP 100–109: AIR OPERATIONS**Series**

100	Use of Air-to-Surface Munitions
101	Use of Air-to-Subsurface Munitions
102	Air-to-Air Engagements
103–109	SPARE

GROUP 110–119: LAW ENFORCEMENT AND ASSISTANCE TO CIVIL AUTHORITIES**Series**

110	Use of Force in Law Enforcement
111	Search, Detention and Arrest of Persons
112	Treatment of Detained and Arrested Persons
113–119	SPARE

GROUP 120–129: CROWD AND RIOT CONTROL**Series**

120	Crowd and Riot Control
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121	Riot Control Agents
122	Riot Control Munitions/Water Cannons
123–129	SPARE

GROUP 130–139: *INFORMATION OPERATIONS***Series**

130	<i>Electronic Warfare</i>
131	<i>Cyber Attacks</i>
132	<i>Military Information Support Operations</i>
133	<i>Military Deception</i>
134–139	SPARE

GROUP 140–149: *OUTER SPACE OPERATIONS***Series**

140	Interference with Satellite Communications
141	Neutralization/Destruction of Satellites
142–149	SPARE

GROUPS 150 PLUS: SPARE

COMPENDIUM OF ROE

1. This Compendium provides rules for inclusion within a ROE profile consistent with law and policy permissions. The rules are divided into groups that deal with different areas of military activity. Within these groups there are a number of series of rules, each of which regulates a distinct activity. Individual rules are selected from the series as required. Spare numbers are provided for the drafting of rules not included in the Compendium. Some of the rules include the term “(SPECIFY).” This means that detail must be inserted to clarify the meaning of the rule. Where amplification of a rule is required, include the details after the term “AMPL” in the rule. (See paragraph 27 for an explanation and Annex C for examples.)
2. The Handbook is constructed on the basis that the right to use force in *individual self-defense* or *unit self-defense* is not limited unless a rule in Groups 10–19 specifically provides for a limitation.
3. In multinational operations, collaborative and coordinated efforts are critical. Ideally multinational partners should participate in each step summarized in paragraph 5 below. Security and other factors may prevent that level of cooperation. If so, the multinational partners should be included in the planning process whenever and wherever possible.
4. The process proposed in paragraph below contemplates that legal advisers participate in each step. If such is not the case, additional steps must be added to facilitate a dedicated legal review.
5. A process for drafting ROE from this Compendium is set out below and summarized in the ROE Drafting Check List below.
 - a. Analyze the mission, including proposed courses of action to accomplish the mission. Pay particular attention to the policy, operational and legal considerations that may affect ROE, including *higher authority* intent or guidance. Determine the character of the operation as involving armed conflict (international or non-international) or as falling outside armed conflict to determine the applicable rules.
 - b. Identify tasks and Commander’s intent from OPORD. The OPORD will contain the mission statement and military tasks that are to be completed to accomplish the mission. These tasks need to be identified to determine which ROE measures are needed in order to complete the tasks. In most operations, the commander will express what his or her goals are and will provide guidance on how he or she wishes the operation to be conducted. The commander’s intent therefore plays a significant role in determining which ROE will be used and how the provisions may be applied.
 - c. Identify any current ROE. This is necessary to determine if changes will be required.
 - d. Draft the ROE. (**Note:** This Handbook adopts a “restrictive” approach to authorization. This means that, unless otherwise specified in an ROE Group or Series, if an ROE measure is not addressed in the ROE, commanders must assume that they have no authority (beyond *individual self-defense* and *unit self-defense*) to carry out that action. See paragraph 22 for further detail on “restrictive” and “permissive” ROE systems.
 - i. Identify Compulsory Rules.

The first ROE to be considered are the compulsory rules. The compulsory rules deal with matters that are fundamental to any mission and must be present in every ROE, even if the rule selected is one that prohibits the military activity. **Every ROE profile is to include a rule from each of series 10, 11, and 12.**

If unit commanders have the authority to limit *individual self-defense* by a member of the unit, rule 10 F must be included.

If a commander's right of unit *self-defense* is limited, rule 11 A must be included, with the limitation specified.

For any mission that may require use of force beyond *self-defense*, a rule that authorizes that use of force, such as series 20, is required.

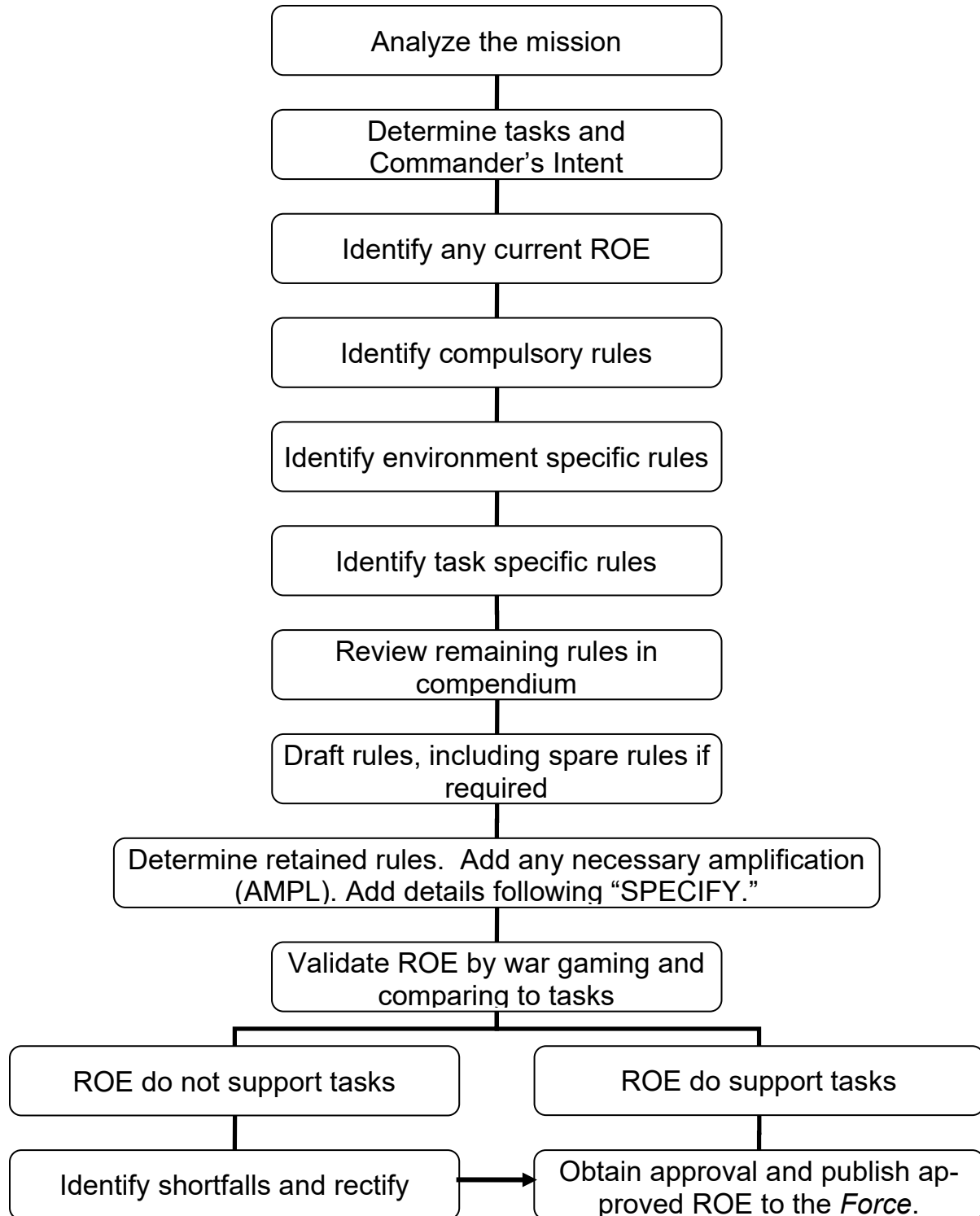
In situations involving armed conflict with a *declared hostile force*, a measure from series 30 is required.

- ii. Identify Environment Specific Rules. Appendix 2 to Annex A provides guidance for drafting ROE for environments including land, maritime, air, *outer space*, and *cyberspace operations*. The rules that are most likely to be required are set out for each environment but are not compulsory.
- iii. Identify Task Specific Rules. Appendix 3 to Annex A provides guidance for drafting ROE for specific tasks including *peace operations*, *non-combatant evacuation operations*, humanitarian assistance/disaster relief, and assistance to civil authorities, *maritime security operations*, private security company operations, and armed conflict. The rules that are most likely to be required are set out for each task but are not compulsory.
- iv. Review remaining rules in Compendium. Each mission is unique so the environment and task specific guidance will not always be sufficient. ROE drafters should check all the series in the Compendium to see if any other rules are required to accomplish the mission.
- v. Draft ROE directive. The ROE directive should be drafted with ROE listed in numerical order. It is possible, and sometimes necessary, to have two rules chosen from the same series.
- vi. Draft spare rules, if required. The Compendium cannot anticipate every possible mission and rule that may be required. Where a rule is not provided, it can be drafted under a spare number using the same format as other rules in that series or as part of a new group or series.
- vii. Determine Retained and Dormant Rules. Decide which rules, if any, are to be retained at a higher level and which rules will be withheld at a higher level until certain conditions are met. Retained and dormant rule conditions will be specified in amplification as set forth in paragraph viii below.
- viii. Determine whether amplification (AMPL) of ROE is required. Amplifications to rules are usually listed at the end of each amplified measure. AMPL identifies the conditions for retained and dormant measures. it provides additional details on the interpretation of specific ROE provisions, to include such things as definitions or explanations of terms. AMPL may also be used to identify explain conditions or situations in which the specific measures may be deactivated.

- ix. Add details following “SPECIFY.” If a rule includes the term “SPECIFY,” additional details must be added in order to clarify the meaning of the rule.
- e. Validate ROE by war gaming and comparing to tasks. The ROE must be checked against the mission and tasks to ensure that it supports mission accomplishment within the limitations set out by *higher authority*. Rectify shortfalls, if any.
- f. Obtain approval. Seek approval from the appropriate level of authority.
- g. Publish approved ROE. Publish approved ROE to the *Force* by OPORD, message, or other appropriate means. The area of operations in which the ROE apply should be specified.

ROE DRAFTING CHECKLIST

Every military organization will have its own processes for ensuring that they draft ROE that are appropriate to the situation, coherent, and lawful. The following checklist is offered as an illustration.



GROUP 10–19: USE OF FORCE IN <i>SELF-DEFENSE</i>		
Notes: For purposes of <i>self-defense</i>, <i>Force</i> includes persons accompanying the <i>Force</i>, Prisoners of War, and internees and detainees under the control of the <i>Force</i>. Many States do not include <i>self-defense</i> measures in ROE. For the purposes of this Handbook, <i>self-defense</i> ROE are included to ensure that in multinational operations the Force Commander and all Force elements know the self-defense authorizations and limits of each contributing State. <i>Cyber attacks</i> in <i>self-defense</i>, including <i>active cyber defense</i> measures that rise to the level of “<i>cyber attacks</i>,” are controlled by Series 131 and not by Group 10–19.		
Series 10	Use of Force in <i>Individual Self-Defense</i>	
Purpose:	To regulate the right to use force in <i>individual self-defense</i> .	
	Rule	
	10 A	Use of force, up to and including <i>deadly force</i> , in <i>individual self-defense</i> is permitted, except as follows: (SPECIFY).
	10 B	Use of <i>non-deadly force</i> in <i>individual self-defense</i> is permitted.
	10 C	Use of force, up to and including <i>deadly force</i> , in <i>individual self-defense</i> is permitted.
	10 D	Use of <i>non-deadly force</i> in defense of property where there is likelihood that destruction of, or damage to, that property will lead to the injury of (SPECIFY persons) is permitted.
	10 E	Use of force in <i>individual self-defense</i> may be limited by a unit commander when an individual is assigned to and acting as a part of that unit.
	10 F–Z	Spare.
Series 11	Use of Force in <i>Unit Self-Defense</i>	
Purpose:	To regulate the right to use force in <i>unit self-defense</i> .	
	Rule	
	11 A	Use of force, up to and including <i>deadly force</i> , is permitted in <i>unit self-defense</i> , except as follows: (SPECIFY e.g., in defense of units of other States in the Force).
	11 B	Use of <i>non-deadly force</i> in <i>unit self-defense</i> is permitted.

	11 C	Use of force, up to and including <i>deadly force</i> , in <i>unit self-defense</i> of (SPECIFY groups or units, e.g., the <i>Force</i> , civilians) is permitted.
	11 D	Use of <i>non-deadly force</i> in <i>unit self-defense</i> of (SPECIFY groups or units) is permitted.
	11 E	Use of <i>non-deadly force</i> where there is likelihood of damage to property that will lead to injury of persons in own unit or other units of own State is permitted.
	11 F	Use of <i>non-deadly force</i> where there is likelihood of damage to property that will lead to injury of persons in (SPECIFY groups or units, e.g., the <i>Force</i> , civilians) is permitted.
	11 G	Use of force, up to and including <i>deadly force</i> , where there is a likelihood of damage to property that will lead to an imminent threat to life in own unit or other units of own State is permitted. Note: Defense of property in such situations is an exercise of the right of <i>unit self-defense</i> in situations where the unit or persons in the unit are in peril. See Series 40 for measures regarding the use of force to protect property.
	11 H–Z	Spare.
Series 12	Use of Force for the Defense of Others	
Purpose:	To regulate the use of force for protection of persons who are not members of the <i>Force</i> . This series can be used to clarify use of force authorizations for, amongst other things, hostage recovery operations.	
	Rule	
	12 A	Use of force for the defense of others is prohibited.
	12 B	Use of <i>non-deadly force</i> for the defense of others in (SPECIFY group) is permitted.
	12 C	Use of force, up to and including <i>deadly force</i> , for the defense of others in (SPECIFY group) is permitted.
	12 D	Use of force, up to and including <i>deadly force</i> , to prevent the commission of a <i>serious crime</i> against (SPECIFY) persons is permitted.
	12 E	Use of force, up to and including <i>deadly force</i> , in defense of property where there is a likelihood that destruction of, or damage to, that property will lead to an imminent threat to life of (SPECIFY persons) is permitted. Note: Defense of property in such situations is an exercise of the right to defend the specified persons. Specified persons might include members of the <i>Force</i> , own State nationals, all civilians, etc. See Series 40 for measures regarding the use of force to protect property where no imminent threat to life exists.

	12 F	(SPECIFY individuals) are <i>declared hostile</i> and may be engaged. Note: For some States, this measure could be used in situations other than armed conflict, such as extraordinary self-defense situations, including hostage rescue. It would apply in situations where the targets have engaged in conduct that threatened lives and continue to demonstrate an imminent threat to the loss of a life or lives. The measure enables the <i>Force Commander, higher authority</i> , or designated commander to make the decision to use force rather than leaving the decision to subordinate personnel. The domestic law of some States might not permit the use of this measure.
	12 G–Z	Spare.
Series 13	Use of Force in <i>National Self-Defense</i> Note: This series applies to <i>self-defense</i> of a State by members of that State’s armed forces against threats from State and non-State actors. For <i>Collective Self-Defense</i> measures, see Series 14.	
Purpose:	To regulate the use of force in <i>national self-defense</i> .	
	Rule	
	13 A	Use of force in <i>national self-defense</i> is prohibited.
	13 B	Use of <i>non-deadly force</i> in <i>national self-defense</i> of (SPECIFY State) is permitted.
	13 C	Use of <i>non-deadly force</i> in <i>national self-defense</i> of (SPECIFY State) when authorized by (SPECIFY authority) is permitted.
	13 D	Use of force, up to and including <i>deadly force</i> , in <i>national self-defense</i> of (SPECIFY State) is permitted.
	13 E	Use of force, up to and including <i>deadly force</i> , in <i>national self-defense</i> of (SPECIFY State) by (SPECIFY Commander) when authorized by (SPECIFY authority) is permitted.
	13 F–Z	Spare.
Series 14	Use of Force in <i>Collective Self-defense</i>	
Purpose	To regulate the use of force in <i>collective self-defense</i> of other States.	
	Rule	
	14 A	Use of force in <i>collective self-defense</i> is prohibited.
	14 B	Use of <i>non-deadly force</i> in <i>collective self-defense</i> of (SPECIFY States or category of States) is permitted.

	14 C	Use of necessary and proportional force, up to and including <i>deadly force</i> , in <i>collective self-defense</i> of (SPECIFY States or category of States) is permitted. Note: For the purposes of this series, States may be listed individually, or by reference to a category such as “all States contributing elements to the <i>Force</i> ”, or “all States contributing elements in accordance with UNSC resolution (insert number).”
	14 D–Z	Spare
Series 15–19	Spare	
GROUP 20–29: MISSION ACCOMPLISHMENT		
Series 20	Use of Force for Mission Accomplishment	
Purpose:	To regulate the use of force for the purposes of mission accomplishment. Note: Where there is no armed conflict, some States will permit the use <i>deadly force</i> only in <i>self-defense</i> .	
	Rule	
	20 A	Use of <i>non-deadly force</i> to accomplish (SPECIFY the mission or missions) is permitted.
	20 B	Use of <i>non-deadly force</i> to counter force used to interfere with (SPECIFY the mission or missions) is permitted.
	20 C	Use of force, up to and including <i>deadly force</i> , to accomplish (SPECIFY the mission or missions) is permitted.
	20 D	Use of force, up to and including <i>deadly force</i> , to counter force used to interfere with (SPECIFY the mission or missions) is permitted.
	20 E–Z	Spare.
Series 21	Protection of Freedom of Movement of Persons	
Purpose:	To regulate the use of force in providing freedom of movement of personnel.	
	Rule	
	21 A	Use of force to prevent interference with the freedom of movement of persons belonging to the <i>Force</i> is prohibited.
	21 B	Use of <i>non-deadly force</i> , to prevent interference with the freedom of movement of persons belonging to the <i>Force</i> , is permitted.

	21 C	Use of force, up to and including <i>deadly force</i> , to prevent interference with the freedom of movement of persons belonging to the <i>Force</i> , is permitted.
	21 D	Use of force to prevent interference with the freedom of movement of (SPECIFY persons) is prohibited.
	21 E	Use of <i>non-deadly force</i> , to prevent interference with the freedom of movement of (SPECIFY persons) is permitted.
	21 F	Use of force, up to and including <i>deadly force</i> , to prevent interference with the freedom of movement of (SPECIFY persons), is permitted.
	21 G–Z	Spare.
Series 22	Prevention of Interference with Ships and Aircraft	
Purpose:	To regulate the circumstances in which force may be used to prevent unauthorized boarding or seizure of ships or aircraft.	
	Rule	
	22 A	Use of force to prevent unauthorized boarding of ships/aircraft is prohibited.
	22 B	Use of <i>non-deadly force</i> to prevent unauthorized boarding of (SPECIFY ships/aircraft) is permitted.
	22 C	Use of force, up to and including <i>deadly force</i> to prevent unauthorized boarding of (SPECIFY ships/aircraft), is permitted.
	22 D–Z	Spare.
Series 23	<i>Warning Shots</i>	
Purpose:	To regulate <i>warning shots</i> other than in <i>self-defense</i> . Note: For warnings other than <i>warning shots</i> see Series 60.	
	Rule	
	23 A	<i>Warning shots</i> are prohibited.
	23 B	<i>Warning shots</i> in the vicinity of (SPECIFY elements) are prohibited.
	23 C	<i>Warning shots</i> in the vicinity of (SPECIFY elements) are permitted.
	23 D	<i>Warning shots</i> to compel compliance with (SPECIFY instructions) are permitted.
	23 E	<i>Warning shots</i> are permitted.
	23 F–Z	Spare.

Series 24	<i>Disabling Fire</i> and <i>Non-disabling Fire</i>	
Purpose:	To regulate <i>disabling fire</i> and <i>non-disabling fire</i> . Note: Not all States use <i>non-disabling fire</i> as a measure or tactic.	
	Rule	
	24 A	<i>Non-disabling fire is prohibited.</i>
	24 B	<i>Non-disabling fire</i> to compel compliance with (SPECIFY instructions) is permitted.
	24 C	<i>Non-disabling fire</i> is permitted.
	24 D	<i>Disabling fire</i> is prohibited.
	24 E	<i>Disabling fire</i> to compel compliance with (SPECIFY instructions) is permitted.
	24 F	<i>Disabling fire</i> is permitted.
	24 G–Z	Spare.
Series 25	Search, Detention, Prevention of Escape, and <i>Tactical Questioning</i> of Persons	
Purpose:	To regulate the circumstances in which persons may be searched and detained and/or subjected to <i>tactical questioning</i> , other than in law enforcement related operations (see Series 111). Notes: For the purposes of this Handbook, authority to conduct interrogations or perform tactical questioning is not controlled by ROE. In the case of armed conflict, the authority to search and detain persons, to prevent escape, and to conduct <i>tactical questioning</i> is <i>presumed</i> .	
	Rule	
	25 A	Search of (SPECIFY persons) is prohibited.
	25 B	Search of (SPECIFY persons) in (SPECIFY circumstances) is permitted.
	25 C	Use of <i>non-deadly force</i> to search (SPECIFY persons) in (SPECIFY circumstances) is permitted.
	25 D	Use of force, up to and including <i>deadly force</i> , to search (SPECIFY persons) in (SPECIFY circumstances) is permitted.
	25 E	Use of <i>non-deadly force</i> to disarm (SPECIFY persons) is permitted.
	25 F	Use of force, up to and including <i>deadly force</i> to disarm (SPECIFY persons), is permitted.

	25 G	Detention of (SPECIFY persons) is prohibited.
	25 H	Detention of (SPECIFY persons) in (SPECIFY circumstances) is permitted.
	25 I	<i>Use of non-deadly force to detain</i> (SPECIFY persons) in (SPECIFY circumstances) is permitted.
	25 J	Use of force, up to and including <i>deadly force</i> , to detain (SPECIFY persons) in (SPECIFY circumstances), is permitted.
	25 K	Use of <i>non-deadly force</i> to prevent the escape of (SPECIFY persons) in (SPECIFY circumstances) is permitted.
	25 L	Use of force, up to and including <i>deadly force</i> , to prevent the escape of (SPECIFY persons) in (SPECIFY circumstances), is permitted.
	25 M–Z	Spare.
Series 26	Use of Force to Secure the Release of Persons	
Purpose:	To regulate the use of force in securing the release of persons such as hostages, prisoners of war, or those being held by an opposing force or by criminals. Note: For some States, use of lethal force in operations to secure the release of persons in situations not governed by LOAC is governed by <i>self-defense</i> via series 10 and 12. For other States, use of lethal force to secure the release of persons in such circumstances may rest in a legal basis other than <i>individual self-defense</i> or use of force in the defense of others.	
	Rule	
	26 A	Use of force to secure the release of persons belonging to the <i>Force</i> is prohibited.
	26 B	Use of <i>non-deadly force</i> to secure the release of persons belonging to the <i>Force</i> is permitted.
	26 C	Use of force, up to and including <i>deadly force</i> , to secure the release of persons belonging to the <i>Force</i> , is permitted in (SPECIFY situation).
	26 D	Use of force to secure the release of (SPECIFY persons) is prohibited.
	26 E	Use of <i>non-deadly force</i> to secure the release of (SPECIFY persons) is permitted.
	26 F	Use of force, up to and including <i>deadly force</i> , to secure the release of (SPECIFY persons) is permitted in (SPECIFY situations).
	26 G–Z	Spare.
Series 27	<i>Indirect Fire (Unobserved Indirect Fire and Observed Indirect Fire)</i>	
Purpose:	To regulate the use of <i>indirect fire</i> .	

	Notes: Definitions of the terms <i>direct fire</i>, <i>observed indirect fire</i>, and <i>unobserved indirect fire</i> vary among States. Annex D provides generally accepted definitions. If national policy dictates a different definition, that definition should be published with the ROE. For the purposes of this Handbook, <i>direct fire</i> and <i>observed indirect fire</i> are permitted unless restricted by a rule. <i>Unobserved indirect fire</i> is not permitted unless authorized by a rule.	
	Rule	
	27 A	Use of (SPECIFY <i>unobserved fire</i> , <i>observed indirect fire</i> , or all <i>indirect fire</i>) is prohibited (in the following situations: SPECIFY situations, e.g., populated areas).
	27 B	Use of <i>unobserved indirect fire</i> is permitted (in the following situations: SPECIFY situations).
	27 C–Z	Spare.
Series 28–29	Spare	
GROUP 30–39: TARGETING IN ARMED CONFLICT		
Series 30	Engagement of <i>Military Objectives</i> and <i>Hostile Forces</i> Notes: All actions under this series are to be conducted in accordance with the applicable LOAC. For example, medical personnel, chaplains of the armed forces and those who are <i>hors de combat</i> may not be <i>attacked</i>. Series 30 should be considered in conjunction with Series 31 - Identification of Targets. <i>Declared hostile force</i> situations outside of armed conflict are addressed in measure 12 E.	
Purpose:	To regulate the engagement of <i>military objectives</i> including <i>hostile forces</i>. Note: For <i>Cyber Attacks</i>, see also series 131.	
	Rule	
	30 A	<i>Attack</i> on <i>declared hostile forces</i> and <i>military objectives</i> within (SPECIFY area) is permitted. AMPL: <i>Declared hostile forces</i> are: a. Combatants of the armed forces of (SPECIFY State), b. Members of (SPECIFY organized armed groups). c. The following categories of civilians taking a direct part in hostilities: (Note: States have different definitions of what qualifies as “direct participation in

		hostilities.” Additionally, if a civilian exhibits a <i>hostile act</i> or <i>hostile intent</i>, use of force in <i>self-defense</i> also would apply. (i) Civilians who engage in the following conduct (SPECIFY: e.g., engage in <i>attacks</i> upon the force or civilians, plant or control IEDs, or other relevant conduct). (ii) Civilians determined to be taking a direct part in hostilities as determined by (SPECIFY commander or other individual with authority.) Note: Rule 30B may be used in preference to 30A in situations where the <i>Force</i> commander wishes to limit <i>attacks</i> upon <i>declared hostile forces</i> for policy or operational reasons.
	30 B	<i>Attack</i> on (SPECIFY <i>military objective(s)</i>) is permitted only in self-defense or authorized by (SPECIFY commander). Note: This measure can be used to limit damage to <i>military objectives</i> that may need to be rebuilt after a conflict or utilized by own <i>Force</i>. Examples include: infrastructure, (public works, communication facilities, and dams), lines of communication (roads, highways, tunnels, bridges, and railway), and economic objectives (commercial storage facilities and pipelines). This measure implements a <i>restricted target list</i>.
	30 C	<i>Attack</i> on (SPECIFY objective) is prohibited Note: This measure implements a <i>no-strike list</i>.
	30 D	(SPECIFY commander) is authorized to declare forces hostile.
	30 E–Z	Spare.
Series 31	Identification of Targets	
Purpose:	To regulate the means of identification required in using force against a LOAC-authorized target.	
	Rule	
	31 A	Identification of a target must be by visual means. Note: For the purpose of this rule, visual means include the use of image magnifiers such as binoculars, telescopes and periscopes.
	31 B	Identification of a target must be by visual means and (SPECIFY one or more or of the following means): a. Identification friend or foe (IFF) b. Other means requiring a response

		c. Thermal imaging d. Electro-optical e. Electronic intercept intelligence f. Data link information g. Passive acoustic analysis h. Track origin and behavior i. Flight path correlation j. Magnetic signature k. <i>Electronic Warfare</i> (EW) support measures l. Other identification means not requiring a response
	31 C	Identification of a target must be by (SPECIFY one or more of the following means): a. Visual b. Identification friend or foe (IFF) c. Other means requiring a response d. Thermal imaging e. Electro-optical f. Electronic intercept intelligence g. Data link information h. Passive acoustic analysis i. Track origin and behavior j. Flight path correlation k. Magnetic signature l. <i>Electronic warfare</i> support measures m. Other identification means not requiring a response
	31 D	Use of information from (SPECIFY sources) for target identification is prohibited.
	31 E	Use of (SPECIFY means) information from (SPECIFY sources) for target identification is permitted.
	31 F	Use of information from (SPECIFY sources) for target identification is permitted.
	31 G–Z	Spare.
Series 32	Neutrals	
Purpose:	To regulate the interaction of own force with neutrals. Note: Belligerents enjoy the rights of innocent passage (subject to nondiscriminatory suspension), transit passage, and archipelagic sea lanes passage in neutral waters.	
	Rule	
	32 A	Interference with the activities of neutrals is prohibited.
	32 B	Interference with the activities of neutrals in accordance with the law of armed conflict for the purposes of (SPECIFY actions, e.g., to conduct visit and

		search, instructing the vessel/aircraft to depart from the immediate area of operations, controlling neutrals in the immediate area of operations, preventing entry into blockaded waters etc.) is permitted.
	32 C	Conduct of (SPECIFY operation) in (SPECIFY neutral States and areas, such as territorial sea, archipelagic waters or airspace) is (SPECIFY permitted or prohibited and include circumstances if necessary for clarity).
	32 D–Z	Spare.
Series 33	Collateral Damage and Incidental Injury or Death Note: Under the law of armed conflict, expected incidental injury or death of civilians and collateral damage to civilian objects must not be excessive in relation to the concrete and direct military advantage anticipated to be gained by the <i>attack</i> . Series 33 can be used to impose limitations beyond the requirements of LOAC.	
Purpose	To impose limits on collateral damage and/or incidental injury or death beyond the requirements of LOAC.	
	Rule	
	33 A	Attacks that are expected to cause (SPECIFY incidental injury or death of civilians or collateral damage to civilian objects or both) are prohibited. Note: Use of force in self-defense is not limited by this rule.
	33 B	Do not target (SPECIFY targets) unless necessary for self-defense.
	33 C	Attacks are prohibited where incidental injury or death of (SPECIFY selected civilians, such as children or a specific number of persons) is expected. Note: Use of force in <i>self-defense</i> is not limited by this rule.
	33D	Attacks are prohibited where collateral damage to (SPECIFY civilian objects, such as hospitals, churches, schools, and cultural sites) is expected, unless approved by (SPECIFY Commander). Note: Approval is not required in cases of <i>self-defense</i> .
	33 E	Attacks are prohibited where incidental injury or death of (SPECIFY selected civilians, such as children or a specific number of persons) is expected unless approved by (SPECIFY Commander). Note: Approval is not required in cases of <i>self-defense</i> .
	33F–Z	Spare

GROUP 40–49: OPERATIONS RELATED TO PROPERTY		
Series 40	Use of Force to Protect Property	
	Note: Use of force to protect property includes use of force to remove persons who have gained unauthorized access to <i>Force</i> operating areas or facilities.	
Purpose:	To regulate the use of force to protect property.	
	Rule	
	40 A	Use of force to protect property belonging to the <i>Force</i> is prohibited.
	40 B	Use of <i>non-deadly force</i> to protect (SPECIFY property) belonging to the <i>Force</i> is permitted.
	40 C	Use of force, up to and including <i>deadly force</i> , to protect (SPECIFY property) belonging to the <i>Force</i> is permitted.
	40 D	Use of force to protect property is prohibited.
	40 E	Use of <i>non-deadly force</i> to protect (SPECIFY property) is permitted.
	40 F	Use of force, up to and including <i>deadly force</i> , to protect (SPECIFY property) is permitted.
	40 G–Z	Spare.
Series 41	Protection and Recovery of Vital, Mission Essential, or Other Designated Property	
Purpose:	To regulate the use of force in the protection and/or recovery of vital, mission essential, or other designated property.	
	Rule	
	41 A	Use of <i>non-deadly force</i> to (SPECIFY protect and/or recover) (SPECIFY property) is permitted.
	41 B	Use of force, up to and including <i>deadly force</i> , to (SPECIFY protect and/or recover) (SPECIFY property) is permitted.
	41 C–Z	Spare.
Series 42	Inspection, Detention, Seizure, and Destruction of Property	
	Rule	
	42 A	Inspection of (SPECIFY property) is prohibited.

	42 B	Inspection of (SPECIFY property) in (SPECIFY circumstances) by (SPECIFY destructive or non-destructive means) is permitted.
	42 C	Use of <i>non-deadly force</i> to inspect (SPECIFY property) in (SPECIFY circumstances) is permitted.
	42 D	Use of force, up to and including <i>deadly force</i> , to inspect (SPECIFY property) in (SPECIFY circumstances), is permitted.
	42 E	Detention or seizure of (SPECIFY property) is prohibited.
	42 F	Use of <i>non-deadly force</i> to (SPECIFY detain or seize) (SPECIFY property) in (SPECIFY circumstances) is permitted.
	42 G	Use of force, up to and including <i>deadly force</i> , to (SPECIFY detain or seize) (SPECIFY property) in (SPECIFY circumstances) is permitted.
	42 H	Use of force to secure the release of (SPECIFY property), following its detention or seizure, is prohibited.
	42 I	Use of <i>non-deadly force</i> to secure the release of property belonging to the <i>Force</i> , following its seizure, is permitted.
	42 J	Use of force, up to and including <i>deadly force</i> , to secure the release of (SPECIFY) property belonging to the <i>Force</i> , following its seizure, is permitted.
	42 K	Use of <i>non-deadly force</i> to secure the release of (SPECIFY property) is permitted.
	42 L	Use of force, up to and including <i>deadly force</i> , to secure the release of (SPECIFY property), is permitted.
	42 M	Destruction of (SPECIFY property) is prohibited.
	42 N	Destruction of (SPECIFY property) in (SPECIFY circumstances) is permitted.
	42 O–Z	Spare.
Series 43–49	Spare	
GROUP 50–59: GEOGRAPHIC POSITIONING		
Series 50	Geographic Positioning of <i>Force</i> Units and Cross-Border Incursions	
Purpose:	To regulate the position of <i>Force</i> units in relation to the territory, maritime zones or airspace of other States. Note: Except to the extent excluded, restricted, modified, or amplified by a measure in Series 58, <i>Force</i> units may exercise freedoms of navigation and over-flight in accordance with international law (see Part V, paragraph 19).	

	Rule	
	50 A	Entry into (SPECIFY area) of (SPECIFY State or area) is prohibited.
	50 B	Approach closer than (SPECIFY distance / range) to (SPECIFY area) is prohibited.
	50 C	Entry into (SPECIFY area) except for the following circumstances (SPECIFY e.g., for transit passage, when rendered necessary by force majeure or distress, in <i>assistance entry</i> , in <i>self-defense</i> , etc.) is prohibited.
	50 D	Entry into (SPECIFY area) for (SPECIFY purpose or task, e.g., innocent passage, transit passage, archipelagic sea lanes passage, and <i>assistance entry</i> , SAR, NEO) is permitted.
	50 E	Entry into (SPECIFY area) is permitted.
	50 F–Z	Spare.
Series 51	Ground Reconnaissance	
Purpose:	To regulate the conduct of ground reconnaissance in the territory of another State.	
	Rule	
	51 A	Conduct of ground reconnaissance in (SPECIFY area) is prohibited.
	51 B	Conduct of ground reconnaissance in (SPECIFY area) is permitted.
	51 C–Z	Spare.
Series 52	Aerial Reconnaissance	
Purpose:	To regulate the use of aerial reconnaissance beyond the national air space of States represented in the <i>Force</i> , including over areas controlled and not controlled by the <i>Force</i> .	
	Rule	
	52 A	Aerial reconnaissance over (SPECIFY area) is prohibited.
	52 B	Aerial reconnaissance against (SPECIFY force) is prohibited.
	52 C	Aerial reconnaissance at altitudes of less than (SPECIFY altitude above ground level) over (SPECIFY force/area) is prohibited.
	52 D	Aerial reconnaissance against (SPECIFY force) is permitted.
	52 E	Aerial reconnaissance over (SPECIFY area) is permitted.

	52 F	Aerial reconnaissance is permitted.
	52 G–Z	Spare.
Series 53	Relative Positioning of <i>Force</i> Units	
Purpose:	To regulate the position of <i>Force</i> units in relation to other units or assets. Note: Positioning of <i>Force</i> units is not restricted unless an ROE measure under this series is implemented. This series is most commonly used in situations where the <i>Force</i> is attempting to influence the escalation or de-escalation of a situation or in situations where the <i>Force</i> is operating in and around areas of controlled airspace.	
	Rule	
	53 A	Approaching closer than (SPECIFY distance/range) to (SPECIFY units / contacts of interest) is prohibited.
	53 B	Approaching (SPECIFY units / contacts of interest) within (SPECIFY distance) for (SPECIFY purpose - e.g., to establish identity) is permitted.
	53 C	Approaching (SPECIFY units / contacts of interest) within (SPECIFY distance) is permitted.
	53 D	Unrestricted approach of (SPECIFY units / contacts of interest) is permitted.
	53 E–Z	Spare.
Series 54	Operations in the Presence of a Potential Adversary	
Purpose:	To regulate the conduct of operations in the presence of a potential adversary. Notes: While the conduct of operations in the presence of a potential adversary is generally lawful activity, such activity could be viewed as provocative.	
	Rule	
	54 A	Conduct of (SPECIFY activity) within (SPECIFY area or within (SPECIFY range) of (SPECIFY units) is prohibited.
	54 B	Conduct of (SPECIFY activity) within (SPECIFY area or within (SPECIFY range) of (SPECIFY units) is permitted.
	54 C	Aiming of weapons in the direction of (SPECIFY units) is prohibited.
	54 D	Aiming of weapons in the direction of (SPECIFY units) is permitted.
	54 E–Z	Spare.
Series 55	Diversions	

Purpose:	To regulate the use and enforcement of diversions.	
	Note: For <i>interception of civil aircraft</i> , procedures outlined in the International Civil Aviation Organization's "Manual Concerning Interception of Civil Aircraft" or appropriate national guidance must be followed.	
	Rule	
	55 A	Ordering of diversions is prohibited.
	55 B	Advising (SPECIFY persons/objects) on land to avoid (SPECIFY) areas is permitted.
	55 C	Advising (SPECIFY) aircraft to avoid (SPECIFY) areas is permitted.
	55 D	Advising (SPECIFY) ships to avoid (SPECIFY) areas is permitted.
	55 E	Ordering of diversions to (SPECIFY person/objects) on land for (SPECIFY) purpose is permitted.
	55 F	Ordering of diversions to (SPECIFY) aircraft for (SPECIFY) purpose is permitted.
	55 G	Ordering of diversions to (SPECIFY) ships for (SPECIFY) purpose is permitted.
	55 H	Ordering of diversions and other instructions to ships suspected of operating in breach of UNSCR (SPECIFY) is permitted.
	55 I	Use of (SPECIFY actions) to compel compliance with (SPECIFY diversion instructions) is permitted.
	55 J	Use of <i>non-deadly force</i> to compel compliance with (SPECIFY diversion instructions) is permitted.
	55 K	Use of force, up to and including <i>deadly force</i> , to compel compliance with (SPECIFY diversion instructions), is permitted.
	55 L–Z	Spare.
Series 56	Use of Obstacles and Barriers	
Purpose:	To regulate the use of obstacles and barriers.	
	Rule	
	56 A	Use of obstacles and barriers is prohibited.
	56 B	Use of non-explosive obstacles and barriers in (SPECIFY circumstances/location) is permitted.

	56 C	Use of (SPECIFY obstacles or barriers) are prohibited.
	56 D	Use of a SPECIFY obstacle or barrier in (SPECIFY circumstances/location) is permitted.
	56 E–Z	Spare.
Series 57	Zones	
Purpose:	To regulate enforcement mechanisms for declared zones in land, maritime, and air environments.	
	Rule	
	57 A	Use of <i>non-deadly force</i> against (SPECIFY units) entering (SPECIFY area) without permission for (SPECIFY purpose e.g., reconnaissance) is permitted.
	57 B	Use of <i>non-deadly force</i> within (SPECIFY area) to disarm (SPECIFY groups or individuals) is permitted.
	57 C	Use of force, up to and including <i>deadly force</i> , within (SPECIFY area) to disarm (SPECIFY groups or individuals) is permitted.
	57 D	Use of force, up to and including <i>deadly force</i> on (SPECIFY units) entering (SPECIFY area) without permission is permitted.
	57 E	Use of force, up to and including <i>deadly force</i> on (SPECIFY units) who have entered (SPECIFY area) and failed to depart when warned is permitted.
	57 F–Z	Spare.
Series 58	Freedom of Navigation in Areas of Excessive Maritime Claims	
Purpose:	To regulate the exercise of freedom of navigation in areas subject to excessive maritime claims. Note: In respect of the exercise of freedoms of navigation and overflight (e.g., high seas freedoms, innocent passage, transit passage, and <i>assistance entry</i>), specific ROE provisions are not required unless those rights are to be restricted. Nevertheless, measures that either authorize or prohibit such actions are included to facilitate clarity.	
	Rule	
	58 A	Exercise of freedom of navigation and overflight in the (SPECIFY e.g., claimed maritime security zone, international strait or other excessive maritime claim area) of (SPECIFY State /States) is prohibited. Note: consider specifying the type of freedom that is prohibited.
	58 B	Exercise of freedom of navigation and overflight in the (SPECIFY e.g., claimed maritime security zone, international strait or other excessive maritime

		claim area) of (SPECIFY State /States) is permitted. Note: consider specifying the type of freedom that is prohibited.
	58C–Z	Spare.
Series 59	Spare	
GROUP 60-69: WARNINGS, <i>HARASSMENT</i>, <i>SHADOWING</i>, <i>ILLUMINATION</i>		
Series 60	Warnings	
Purpose:	To regulate the use of warnings. Note: For use of <i>warning shots</i> refer to Series 23— <i>Warning Shots</i> . Nothing in this Series prohibits an individual, vehicle, vessel, or aircraft from communicating or displaying a <i>warning signal</i> .	
	Rule	
	60 A	Use of warnings is prohibited.
	60 B	Use of warnings is permitted.
	60 C	Use of (SPECIFY warnings) directed towards (SPECIFY elements) is permitted.
	60 D	Energizing fire control radar as a means of warning is prohibited.
	60 E	Energizing fire control radar as a means of warning is permitted.
	60 F–Z	Spare.
Series 61	<i>Harassment</i>	
Purpose:	To regulate <i>harassment</i> and responses to <i>harassment</i> . Note: If <i>harassment</i> is authorized, the types of permitted harassing activity should be specified.	
	Rule	
	61 A	<i>Harassment</i> is prohibited.
	61 B	<i>Harassment</i> that will not result in physical damage is permitted.
	61 C	<i>Harassment</i> that may result in physical damage is prohibited.
	61 D	<i>Harassment</i> that may result in physical damage is permitted.

	61 E	<i>Harassment</i> in the form of (SPECIFY type, e.g., riding off) is permitted.
	61 F	Responses to <i>harassment</i> may include: (SPECIFY type, e.g., riding off or use of fire hoses)
	61 G–Z	Spare.
Series 62	<i>Shadowing and Marking</i>	
Purpose:	To regulate or restrict the conduct of <i>shadowing</i> , surveillance, and <i>marking</i> .	
	Rule	
	62 A	<i>Shadowing</i> is prohibited.
	62 B	<i>Shadowing</i> of (SPECIFY) units, elements, or units is permitted.
	62 C	<i>Marking</i> is prohibited.
	62 D	<i>Marking</i> of (SPECIFY) units is permitted.
	62 E–Z	Spare.
Series 63	Sensors and <i>Illumination</i>	
Purpose:	To regulate the use of sensors and means of <i>illumination</i> used for purposes other than navigation and safety. Note: Care shall be taken not to illuminate the bridge, cab, or cockpit in such a way as to blind persons in control of ships, vehicles, or aircraft being illuminated.	
	Rule	
	63 A	<i>Illumination</i> is prohibited.
	63 B	<i>Illumination</i> of (SPECIFY) by (SPECIFY equipment) is permitted.
	63 C	Use of laser designators in (SPECIFY circumstances) is permitted.
	63 D	Use of laser range finders in (SPECIFY circumstances) is permitted. Note: It is unlawful to use laser-targeting systems to deliberately cause blindness.
	63 E	Energizing fire-control radars in the direction of (SPECIFY) prohibited.
	63 F	Energizing fire-control radars in the direction of (SPECIFY) permitted.

	63 G	Use of all illuminates and <i>illumination</i> systems is permitted.
	63 H	Use of active sensors is prohibited.
	63 I	Use of active sensors is permitted.
	63 J	Unrestricted use of sensors is permitted.
	63 K–Z	Spare.
Series 64–69	Spare	
GROUP 70–79: RESTRICTIONS ON CARRYING WEAPONS DURING OPERATIONS OTHER THAN ARMED CONFLICT Notes: The Handbook assumes that members of the <i>Force</i> are authorized to carry weapons unless otherwise provided by a measure in Series 70. Measures 70 B and 70 C are optional measures provided for use if considered necessary to provide clarity regarding the carrying of weapons. This group is designed to apply to operations such as humanitarian assistance, disaster relief or peace support operations in which the carrying of weapons might not be authorized.		
Series 70	Restrictions on Carrying Weapons	
Purpose:	To restrict the carrying of weapons.	
	Rule	
	70 A	Carrying of (SPECIFY all weapons or types of weapons, e.g., crew served weapons) by members of the <i>Force</i> in (SPECIFY location and/or situation) is prohibited.
	70 B	Carrying of (SPECIFY type of weapons, e.g., crew served weapons) by members of the <i>Force</i> in (SPECIFY area) is permitted.
	70 C	Carrying of weapons by members of the <i>Force</i> is permitted.
	70 D–Z	Spare.
Series 71–79	Spare	
GROUP 80–89: USE OF WEAPON SYSTEMS, INCLUDING SPECIALLY REGULATED WEAPONS SYSTEMS Notes: For the purpose of this series, specially regulated weapons include land mines, <i>cluster munitions</i>, booby traps, dazzlers, <i>semi-autonomous</i> and <i>autonomous weapons systems</i>, and other specified weapon systems. Treaty law and national policies, which go beyond the requirements of customary international law, have placed limitations on the use of		

these weapon systems by some States. Nuclear weapons are not addressed in this Handbook since their use is controlled generally by directives outside the ROE system.

For rules related to *naval mines*, see Series 92.

For rules related to *electronic attack*, see Series 130.

For rules related to *cyber attack*, see Series 131.

In relation to use of weapon systems other than those listed above, commanders may use any lawful weapon available for mission accomplishment, unless (and to the extent of) any additional limitation imposed by another rule, such as series 85, which provides for the control of additional weapons systems.

Although *semi-autonomous weapon systems* are included within the definition of specially regulated weapon systems, their use is permitted unless prohibited by a rule in series 83.

Series 80	Use of Land Mines	
Purpose:	To regulate the use of land mines (including <i>anti-personnel mines</i>).	
	Rule	
	80 A	Use of land mines (including <i>anti-personnel mines</i>) is prohibited.
	80 B	Use of <i>anti-personnel mines</i> is prohibited.
	80 C	Use of surface laid anti-vehicle mines in (SPECIFY area) is permitted.
	80 D	Use of concealed anti-vehicle mines in (SPECIFY area) is permitted.
	80 E	Use of land mines (including <i>anti-personnel mines</i>) in (SPECIFY circumstances) is permitted.
	80 F	Use of command-detonated mines is permitted.
	80 G	Use of land mines (except <i>anti-personnel mines</i>) in (SPECIFY circumstances) is permitted.
	80 H	Use of land mines (except <i>anti-personnel mines</i>) is permitted.
	80 I	Use of land mines (including <i>anti-personnel mines</i>) is permitted.
	80 J–Z	Spare.
Series 81	Use of <i>Cluster Munitions</i>	
Purpose:	To regulate the use of <i>cluster munitions</i> .	

	Rule	
	81 A	Use of <i>cluster munitions</i> is prohibited.
	81 B	Use of <i>cluster munitions</i> against (SPECIFY objectives) is permitted.
	81 C	Use of <i>cluster munitions</i> in (SPECIFY area) is permitted.
	81 D–Z	Spare.
Series 82	Use of Booby Traps	
Purpose:	To regulate the use of booby traps.	
	Rule	
	82 A	Use of booby traps is prohibited.
	82 B	Use of explosive booby traps is prohibited.
	82 C	Use of explosive booby traps in (SPECIFY circumstances) is permitted.
	82 D	Use of booby traps against (SPECIFY objectives) is permitted.
	82 E–Z	Spare
Series 83	Use of <i>semi-autonomous weapons systems</i>	
Purpose	To restrict the use of <i>semi-autonomous weapons systems</i> Notes: This series does not apply to or limit use of <i>cyberspace</i> systems, land mines, or <i>naval mines</i>. This series does not apply to or limit the use of systems that use non-lethal and/or non-kinetic force. This series assumes that use of a <i>semi-autonomous weapon system</i> is permitted unless prohibited or limited by a rule.	
	Rule	
	83 A	Use of <i>semi-autonomous weapons systems</i> is prohibited.
	83 B	Use of <i>semi-autonomous weapons systems</i> is permitted only in (SPECIFY circumstances).
	83 C	Use of <i>semi-autonomous weapons systems</i> is permitted only against (SPECIFY objectives).
	83 D–F	Spare

Series 84	Use of <i>autonomous weapons systems</i>	
Purpose	To regulate the use of <i>autonomous weapons systems</i> Note: This series assumes that use of an <i>autonomous weapon system</i> is prohibited unless authorized by a rule.	
	Rule	
	84 A	Use of <i>autonomous weapons systems</i> is prohibited.
	84 B	Use of <i>autonomous weapons systems</i> in (SPECIFY circumstances) is permitted.
	84 C	Use of <i>autonomous weapons systems</i> against (SPECIFY objectives) is permitted.
	84 D	Use of <i>autonomous weapons systems</i> is permitted.
	84 E–Z	Spare
Series 85		Use of Specified Weapon Systems
Purpose		To authorize or restrict the use of specified weapon systems. Note: This series provides for <i>higher authority</i> control of additional weapons systems, such as <i>sonic weapons</i> .
	Rule	
	85 A	Use of (SPECIFY weapon system or systems) in (SPECIFY circumstances) is prohibited.
	85 B	Use of (SPECIFY weapon system or systems) in (SPECIFY circumstances) is permitted.
	85 C–Z	Spare
Series	86–89	Spare
GROUP 90–99: MARITIME OPERATIONS		
Series 90	<i>Maritime Security Operations</i>	
Purpose:	To regulate the use of force in the conduct of <i>maritime security operations</i> in a State's own maritime zones, in <i>international waters</i> , or in the maritime zones of other States where appropriately authorized.	

	Notes: See paragraph 2.2 in Appendix 2 to Annex A for guidance on drafting rules of engagement for maritime operations. For rules relating to the defense of individuals subject to <i>hostile act</i> or <i>hostile intent</i> in the course of <i>maritime security operations</i>, see Series 12—Use of Force for the Defense of Others.	
	Rule	
	90 A	Use of <i>non-deadly force</i> to halt non-innocent passage in the territorial sea of (SPECIFY States) is permitted.
	90 B	Use of force, up to and including <i>deadly force</i> , to halt non-innocent passage in the territorial sea of (SPECIFY States) is permitted.
	90 C	Use of <i>non-deadly force</i> to conduct law enforcement in the <i>national waters</i> of (SPECIFY States) is permitted.
	90 D	Use of force, up to and including <i>deadly force</i> , to conduct law enforcement in the <i>national waters</i> of (SPECIFY States) permitted.
	90 E	Use of <i>non-deadly force</i> to enforce fiscal, immigration, sanitary, customs, and environmental legal regimes and relevant domestic law in the contiguous zone of (SPECIFY States) is permitted.
	90 F	Use of <i>non-deadly force</i> to enforce resource-related legal regimes and relevant domestic law in the exclusive economic zone and on the outer continental shelf of (SPECIFY States) is permitted.
	90 G	Use of <i>non-deadly force</i> to accomplish hot pursuit is permitted.
	90 H	Use of <i>non-deadly force</i> in suppression of <i>piracy</i> in <i>international waters</i> is permitted in the following situations: (SPECIFY situations).
	90 I	Use of force, up to and including <i>deadly force</i> , in suppression of <i>piracy</i> in <i>international waters</i> is permitted in the following situations: (SPECIFY situations).
	90 J	Continued pursuit of a fleeing pirate ship or pirate aircraft that proceeds into the territorial sea, archipelagic waters or superjacent airspace of (SPECIFY State or States) is permitted if authorized by the coastal state, if authorized by (SPECIFY commander), or if the on-scene commander determines that all of the following conditions apply: immediate action is necessary to save the lives of victims, communications with the coastal state are not reasonably available, and the coastal state is unable or unwilling to provide effective and prompt assistance.

		Note: Every effort should be made to obtain the consent of the coastal State prior to continuation of the pursuit. Pursuit must be discontinued upon request by the coastal state unless <i>Higher Authority</i> authorizes continued pursuit.
	90 K	Continued pursuit of a fleeing pirate ship or pirate aircraft that proceeds into the territorial sea, archipelagic waters or airspace of (SPECIFY coastal State) is prohibited.
	90 L	Seizure of property reasonably suspected of being used for or intended for use for piracy (including, but not limited to communications devices, weapons, boarding ladders, and rope) is permitted.
	90 M	Destruction of pirate equipment reasonably suspected of being used for or intended for use for piracy (including, but not limited to communications devices, weapons, boarding ladders, and rope) is permitted.
	90 N–Z	Spare.
Series 91	Submarine Contacts	
Purpose:	To regulate the interaction of <i>Force</i> units with submarine contacts. Note: The use of <i>deadly force</i> against a submarine contact would be authorized under Group 10–19 (<i>Self Defense</i>) or Rule 30 A (Armed Conflict).	
	Rule	
	91 A	(SPECIFY action) against (SPECIFY) submarine contacts in (SPECIFY area or circumstances) is prohibited.
	91 B	Continued tracking of (SPECIFY) submarine contacts by (SPECIFY means e.g., passive/active sonar, magnetic anomaly detection, sonobuoy) is permitted.
	91 C	Use of warnings to induce (SPECIFY) submarine contacts to (SPECIFY result e.g., surface, leave the area) in (SPECIFY circumstances e.g., when located within xxx range of own forces) is permitted.
	91 D	Use of <i>non-deadly force</i> to induce (SPECIFY) submarine contacts to (SPECIFY result e.g., surface, leave the area) in (SPECIFY circumstances e.g., when located within (SPECIFY range) of own forces) is permitted.
	91 E	Use of force, up to and including <i>deadly force</i> to induce (SPECIFY) submarine contacts to (SPECIFY result e.g., surface, leave the area) in (SPECIFY circumstances e.g., when located within xxx range of own forces) is permitted.
	91 F	Use of warnings to induce (SPECIFY submarine contacts) to (SPECIFY result e.g., surface, leave the area) is permitted.
	91 G	Use of <i>non-deadly force</i> to induce (SPECIFY submarine contacts) to (SPECIFY result e.g., surface, leave the area) is permitted.

	91 H	Use of force, up to and including <i>deadly force</i> to induce (SPECIFY submarine contacts) to (SPECIFY result e.g., surface, leave the area) is permitted.
	91 I–Z	Spare.
Series 92	<i>Naval Mines</i>	
Purpose:	To regulate the use of, and response to, <i>naval mines</i> .	
	Rule	
	92 A	Use of <i>naval mines</i> is prohibited.
	92 B	Use of (SPECIFY type) <i>armed naval mines</i> in (SPECIFY areas) in (SPECIFY circumstances) is permitted.
	92 C	Use of (SPECIFY type) <i>controlled naval mines</i> in (SPECIFY areas) in (SPECIFY circumstances) is permitted.
	92 D	Use of <i>non-deadly force</i> , against (SPECIFY vessels) engaged in (SPECIFY activity) in (SPECIFY areas) is permitted.
	92 E	Use of force, up to and including <i>deadly force</i> against (SPECIFY vessels) engaged in (SPECIFY activity) in (SPECIFY areas) is permitted.
	92 F	The removal, sweeping or neutralization of <i>naval mines</i> in (SPECIFY areas) is permitted.
	92 G–Z	Spare.
Series 93	Boarding	
Purpose:	To regulate the boarding of ships. Notes: See also Series 23 <i>Warning Shots</i> and Series 24 <i>Disabling Fire</i> and <i>Non-disabling fire</i>. International law recognizes several legal bases for boarding of ships by warships. The issue of whether the boarding is <i>compliant</i>, <i>non-compliant</i> or <i>opposed</i> is a separate issue. For example, a lawful boarding may nevertheless be <i>opposed</i> or <i>noncompliant</i> when a master seeks to prevent the boarding despite the legal right of the warship to conduct it. <i>Compliant boarding</i>, <i>non-compliant boarding</i>, and <i>opposed boarding</i> must each be authorized by separate measures.	
	Rule	
	93 A	Boarding of ships is prohibited.
	93 B	<i>Compliant boarding</i> of (SPECIFY ships) is permitted.

	93 C	<i>Compliant boarding</i> of (SPECIFY ships) where there are reasonable grounds for suspecting that the ship is (SPECIFY e.g., engaged in <i>piracy</i> , slave trading, ship without nationality, or ship of the same nationality as the warship refusing to show flag, or ship engaged in unauthorized broadcasting) is permitted.
	93 D	<i>Compliant boarding</i> of (SPECIFY ships) in accordance with UNSCR (SPECIFY) is permitted.
	93 E	<i>Non-compliant boarding</i> using (SPECIFY <i>non-deadly force</i> or use of force up to and including <i>deadly force</i>) of (SPECIFY ships) is permitted.
	93 F	<i>Non-compliant boarding</i> using (SPECIFY <i>non-deadly force</i> or use of force up to and including <i>deadly force</i>) of (SPECIFY ships) where there are reasonable grounds for suspecting that the ship is (SPECIFY e.g., engaged in <i>piracy</i> , slave trading, ship without nationality, or ship of the same nationality as the warship refusing to show flag, or ship engaged in unauthorized broadcasting) is permitted.
	93 G	<i>Non-compliant boarding</i> using (SPECIFY <i>non-deadly force</i> or use of force up to and including <i>deadly force</i>) of (SPECIFY ships) (in accordance with (SPECIFY UNSCR or other authority)) is permitted.
	93 H	<i>Opposed boarding</i> using (SPECIFY <i>non-deadly force</i> or use of force up to and including <i>deadly force</i>) of (SPECIFY ships) (in accordance with (SPECIFY UNSCR or other authority)) is permitted.
	93 I	<i>Opposed boarding</i> using (SPECIFY <i>non-deadly force</i> or use of force up to and including <i>deadly force</i>) of (SPECIFY ships) where there are reasonable grounds for suspecting that the ship is (SPECIFY e.g., engaged in <i>piracy</i> , slave trading, ship without nationality, or ship of the same nationality as the warship refusing to show flag, or ship engaged in unauthorized broadcasting) is permitted.
	93 J–Z	Spare.
Series 94	Naval Interdiction Operations During Armed Conflict	
Purpose:	To regulate the employment of authorizations for Visit and Search, and Blockade, in the context of Armed Conflict. Note: This series must be used in conjunction with (amongst others) Series 23–25, 32, 42, 55, and 93 to provide rules that authorize specific actions required in conducting Visit and Search or enforcing a Blockade (such as <i>warning shots</i>, <i>disabling fire</i>, boarding, and so on). This series is only available in armed conflict situations.	
	Rule	
	94 A	Visit and search of vessels is prohibited.
	94 B	Use of <i>non-deadly force</i> to conduct visit and search of (SPECIFY class) vessels is permitted.

	94 C	Use of force, up to an including <i>deadly force</i> , to conduct visit and search of (SPECIFY class) vessels is permitted.
	94 D	Seizure / destruction of items on the promulgated contraband list is prohibited.
	94 E	Seizure / destruction of items on the promulgated contraband list is permitted.
	94 F	Blockade of (SPECIFY State) coast is prohibited.
	94 G	Use of <i>non-deadly force</i> to blockade (SPECIFY State) coast is permitted.
	94 H	Use of force, up to an including <i>deadly force</i> , to blockade (SPECIFY State) coast is permitted.
	94 I–Z	Spare
Series 95–99	Spare	
GROUP 100–109: AIR OPERATIONS		
Series 100	Use of Air-to-Surface Munitions	
Purpose:	To regulate the use of air-to-surface munitions. Notes: Use of non-precision-guided munitions is permitted unless prohibited by this series. The selection of the appropriate weapon for conducting an aerial bombardment remains primarily a military judgment rather than a legal one. In particular, there is no law of war requirement to use <i>precision-guided munitions</i> when non-precision-guided weapons may be used in compliance with the LOAC.	
	Rule	
	100 A	Use of air-to-surface munitions is prohibited.
	100 B	Use of non-precision-guided air-to-surface munitions is prohibited.
	100 C	Use of non-precision-guided air-to-surface munitions in (SPECIFY areas) is prohibited.
	100 D	Use of air-to-surface <i>precision-guided munitions</i> in (SPECIFY areas) is permitted.
	100 E	Use of air-to-surface munitions against (SPECIFY objectives) is permitted.
	100 F–Z	Spare.
Series 101	Use of Air-to-Subsurface Munitions	
Purpose:	To regulate the use of air-to-subsurface munitions.	

	Rule	
	101 A	Use of air-to-subsurface munitions is prohibited.
	101 B	Use of air-to-subsurface munitions against targets belonging to (SPECIFY force) is permitted.
	101 C	Use of air-to-subsurface munitions in (SPECIFY areas) is permitted.
	101 D–Z	Spare.
Series 102	Air-to-Air Engagements	
Purpose:	To regulate air-to-air engagements.	
	Rule	
	102 A	Beyond visual range, air-to-air engagement of hostile aircraft is prohibited.
	102 B	Beyond visual range, air-to-air engagement of hostile aircraft is permitted.
	102 C–Z	Spare.
Series 103–109	Spare	
GROUP 110–119: LAW ENFORCEMENT AND ASSISTANCE TO CIVIL AUTHORITIES		
Series 110	Use of Force in Law Enforcement	
Purpose:	To regulate the use of force in law enforcement.	
	Rule	
	110 A	Use of force in law enforcement and assistance to civil authorities is prohibited.
	110 B	Use of <i>non-deadly force</i> to prevent the commission of a crime against (SPECIFY person and/or property) in the absence of other law enforcement officials is permitted.
	110 C	Use of <i>non-deadly force</i> to prevent the commission of a crime against (SPECIFY person and/or property) is permitted.
	110 D	Use of <i>non-deadly force</i> to prevent the escape of a prisoner is permitted.
	110 E	Use of force, up to and including <i>deadly force</i> , to prevent the commission of a <i>serious crime</i> in the absence of other law enforcement officials is permitted.
	110 F	Use of force, up to and including <i>deadly force</i> , to prevent the commission of a <i>serious crime</i> is permitted.

		Note: this measure is the same as measure 12D.
	110 G	Use of force, up to and including <i>deadly force</i> , to prevent the commission of a crime against (SPECIFY) property is permitted.
	110 H	Use of force, up to and including <i>deadly force</i> , is authorized when it reasonably appears to be necessary to prevent the escape of a prisoner who has committed or attempted to commit a <i>serious crime</i> and would pose an imminent threat of death or serious bodily harm to <i>Force</i> personnel or others in the vicinity.
	110 I	Use of force, up to and including <i>deadly force</i> , is authorized when it reasonably appears to be necessary to arrest or apprehend a person who has committed a <i>serious crime</i> .
	110 J–Z	Spare.
Series 111	Search, Detention and Arrest of Persons	
Purpose:	To regulate search, detention and/or arrest of persons during law enforcement related operations. Notes: For search <i>and</i> detention of persons in non-law enforcement operations, refer to series 25—Search, Detention, Prevention of Escape, and <i>Tactical Questioning</i> of Persons. For the purposes of this Handbook, authority to conduct interrogations is not controlled by ROE. This series assumes that <i>tactical questioning</i> is permitted in all operations and that searches are permitted in all operations if necessary for <i>self-defense</i>.	
	Rule	
	111 A	Search of (SPECIFY persons) is prohibited.
	111 B	Search of (SPECIFY persons) in (SPECIFY circumstances) is permitted.
	111 C	Use of <i>non-deadly force</i> to search (SPECIFY persons) in (SPECIFY circumstances) is permitted.
	111 D	Detention or arrest of persons is prohibited.
	111 E	Detention of persons found committing a <i>serious crime</i> is permitted.
	111 F	Detention of persons reasonably believed to be about to commit a crime is permitted.
	111 G	Detention of persons found committing a crime is permitted.
	111 H	Detention of persons reasonably believed to be about to commit a crime is permitted.

	111 I	Detention of persons found escaping from having committed a <i>serious crime</i> is permitted.
	111 J	Arrest of persons found committing a <i>serious crime</i> is permitted.
	111 K	Arrest of persons found committing a crime is permitted.
	111 K	Arrest of persons reasonably believed to be about to commit a <i>serious crime</i> is permitted.
	111 L	Arrest of persons reasonably believed to be about to commit a crime is permitted.
	111 M	Arrest of persons reasonably believed to have committed a <i>serious crime</i> is permitted.
	111 N	Arrest of persons who are reasonably believed to have committed a crime is permitted.
	111 O–Z	Spare.
Series 112	Treatment of Detained and Arrested Persons	
Purpose:	To regulate actions taken against persons who have been detained or arrested during law enforcement related operations. Note: For detention of persons in non-law enforcement operations, refer to Series 25—Search, Detention, Prevention of Escape, and <i>Tactical Questioning</i> of Persons.	
	Rule	
	112 A	Use of <i>non-deadly force</i> to search a detained or arrested person for weapons or other items that could pose a threat to the safety of any person is permitted.
	112 B	Use of <i>non-deadly force</i> to disarm (SPECIFY persons) is permitted.
	112 C	Use of (SPECIFY restraints e.g., handcuffs) on (SPECIFY persons) is permitted.
	112 D	Use of <i>non-deadly force</i> to prevent (SPECIFY persons) from escaping is permitted.
	112 E	Use of force, up to and including <i>deadly force</i> , to prevent (SPECIFY persons) from escaping is permitted.
	112 F–Z	Spare.
Series 113–119	Spare	

GROUP 120–129: CROWD AND RIOT CONTROL		
Note: For control of other weapons systems during riot control, see Series 85—Use of Specified Weapon Systems.		
Series 120	Crowd and Riot Control	
Purpose:	To regulate the use of force in riot control.	
	Rule	
	120 A	Use of force during riot control is prohibited.
	120 B	Use of <i>non-deadly force</i> during riot control in (SPECIFY circumstances) is permitted.
	120 C	Use of force, up to and including <i>deadly force</i> , during riot control in (SPECIFY circumstances), is permitted.
	120 D–Z	Spare.
Series 121	Riot Control Agents	
Purpose:	To regulate the use of riot control agents.	
	Rule	
	121 A	Use of (SPECIFY riot control agents, e.g., pepper spray, tear gas) is prohibited in (SPECIFY circumstances).
	121 B	Use of (SPECIFY riot control agents) in (SPECIFY circumstances) is permitted.
	121 C–Z	Spare.
Series 122	Riot Control Munitions/ Water Cannons	
Purpose:	To regulate the use of riot control munitions and use of water cannons.	
	Rule	
	122 A	Use of riot control munitions is prohibited.
	122 B	Use of riot control munitions is permitted in (SPECIFY circumstances).
	122 C	Use of (SPECIFY riot control munitions e.g., baton rounds, bean bags etc.) is permitted in (SPECIFY circumstances).
	122 D	Use of water cannons is prohibited.
	122 E	Use of water cannons is permitted in (SPECIFY circumstances).

	122 F–Z	Spare.
Series 123–129	Spare	
GROUP 130–139: INFORMATION OPERATIONS		
Series 130	<i>Electronic Warfare</i>	
Purpose:	To regulate the use of <i>electronic attack</i> . Note: Caution should be exercised to avoid unnecessary attacks against safety of navigation resources.	
	Rule	
	130 A	<i>Electronic attack</i> is prohibited.
	130 B	(SPECIFY type or types of <i>electronic attack</i> measures) against (SPECIFY target or targets) is permitted.
	130 C	(SPECIFY types of <i>electronic attack</i> measures) against (SPECIFY frequency range) are permitted.
	130 D	(SPECIFY types of <i>electronic attack</i> measures) are permitted.
	130 E	<i>Electronic attack</i> is permitted.
	130 F–Z	Spare.
Series 131	<i>Cyber Attacks</i> Notes: This series regulates only <i>cyber attacks</i> . It does not regulate <i>cyberspace operations</i> short of <i>cyber attack</i> , such as <i>cyberspace exploitation</i> , <i>cyberspace security</i> , or <i>passive cyber defense</i> . <i>Active cyber defense</i> actions that fall within the definition of <i>cyber attack</i> are regulated by this series. <i>Cyber attacks</i> in <i>self-defense</i> are controlled by Series 131 and not by Group 10–19. <i>Self-defense</i> measures taken from this series should specify whether the measure is a <i>unit self-defense</i> , <i>national self-defense</i> , or a <i>collective self-defense</i> measure. There is not yet a consensus regarding whether interference with functionality or data meets the “damage” or “destruction” definition of the term <i>cyber attack</i> . Accordingly, <i>self-defense</i> measures should clarify whether interference with functionality or data is included within the definition of “ <i>cyber attack</i> .” See Appendix 6 to Annex A for a discussion of action designed to minimize collateral damage.	

Purpose:	To regulate the conduct of <i>cyber attacks</i> .	
	Rule	
	131 A	<i>Cyber attacks</i> are prohibited.
	131 B	When authorized by (SPECIFY commander or <i>higher authority</i>), cyber attacks (SPECIFY in <i>unit self-defense</i> , <i>national self-defense</i> , and/or a <i>collective self-defense</i> measure if applicable) to (SPECIFY effect, e.g., destroy, degrade, disrupt, deny) against (SPECIFY target system(s) - e.g., information on computers and or networks, or the computers and or networks themselves) of (SPECIFY target State, actor or system e.g., governmental systems, commercial systems, military systems) are permitted.
	131 C	<i>Cyber attacks</i> (SPECIFY in <i>unit self-defense</i> , <i>national self-defense</i> , and/or a <i>collective self-defense</i> measure if applicable) to (SPECIFY effect, e.g., destroy, degrade, disrupt, deny) against (SPECIFY target system(s) - e.g., information on computers and or networks, or the computers and or networks themselves) of (SPECIFY target State, actor or system e.g., governmental systems, commercial systems, military systems) are permitted.
	131 D–Z	Spare.
Series 132	<i>Military Information Support Operations</i> (formerly “psychological operations”)	
Purpose:	To regulate the use of <i>military information support operations</i> . Note: This Series is to be read with the relevant rules relating to Series 53—Relative Positioning of <i>Force</i> Units.	
	Rule	
	132 A	<i>Military information support operations</i> are prohibited.
	132 B	<i>Military information support operations</i> broadcasts to (SPECIFY target audience) over (SPECIFY medium e.g., radio channels, television channels, web pages) are permitted.
	132 C	Use of (SPECIFY method e.g., computer, email and telephone systems) to communicate approved messages to (SPECIFY approved target audiences) is permitted.
	132 D	Leaflet distribution to communicate approved messages is permitted.
	132 E–Z	Spare.
Series 133	<i>Military Deception</i> Note: <i>Military deception</i> is permitted unless restricted by a rule in this series.	

Purpose:	To regulate the use of <i>military deception</i> .	
	Note: Unlawful acts of <i>Perfidy</i> are prohibited at all times.	
	Rule	
	133 A	<i>Military deception</i> is prohibited.
	133 B	When authorized by (SPECIFY authority), use of (SPECIFY physical <i>military deception</i> e.g., dummy or decoy equipment) against (SPECIFY adversary, group, or target) is permitted.
	133 C	When authorized by (SPECIFY authority), use of (SPECIFY technical means e.g., electronic deception) against (SPECIFY adversary, group, or target) is permitted.
	133 D	When authorized by (SPECIFY authority), use of (SPECIFY administrative means e.g., convey/deny oral, pictorial, documentary, or other physical evidence) against (SPECIFY adversary, group, or target) is permitted.
	133 E–Z	Spare.
Series 134–139	Spare	
GROUP 140–149: OUTER SPACE OPERATIONS		
Series 140	Interference with Satellite Communications	
Purpose:	To regulate interference with satellite communications.	
	Rule	
	140 A	Interference with satellite communications is prohibited.
	140 B	Interference with strategic satellite-enabled early warning sensors and core communications systems is prohibited.
	140 C	Interference with communications for (SPECIFY satellite type e.g., communications, reconnaissance, global positioning etc.) belonging to (SPECIFY State/organization) for (SPECIFY scope, intensity, and duration of time) is permitted.
	140 D	Interference with communications for satellites belonging to (SPECIFY State/organization) is permitted.
	140 E–Z	Spare.
Series 141	Neutralization/Destruction of Satellites	
Purpose:	To regulate actions taken to <i>neutralize</i> or destroy satellites.	

	Rule	
	141 A	<i>Neutralization</i> of satellites is prohibited.
	141 B	<i>Neutralization</i> of (SPECIFY satellite type e.g., communications, reconnaissance, navigation, global positioning etc.) belonging to (specify State/organization) is permitted.
	141 C	<i>Neutralization</i> of (SPECIFY satellite type e.g., communications, reconnaissance, navigation, global positioning etc.) belonging to (SPECIFY State/organization) for (SPECIFY scope, intensity, and duration of time) is permitted.
	141 D	Destruction of satellites is prohibited.
	141 E	Destruction of (SPECIFY satellite type e.g., communications, reconnaissance, navigation, global positioning, etc.) belonging to (SPECIFY State/organization) to accomplish the following effects (SPECIFY effects) is permitted.
	141 F–Z	Spare.
Series 142–149	Spare	
GROUPS 150–	SPARES	

FORMATS FOR ROE AND ROE RELATED MATERIALS

1. This Annex provides a selection of templates for a range of ROE-related documents.

Appendix 1	ROE Annex to OPODER Example
Appendix 2	ROERREQ, ROEAUTH and ROEIMP Message Examples
Appendix 3	ROE Matrix for Multinational Operations Example
Appendix 4	ROE Cards
Appendix 5	<i>Maritime Warning Zone</i> and <i>No-Fly Zone</i> Announcements
Appendix 6	Requests for Identification and Warnings
Appendix 7	Responses to Queries, Warnings, and Challenges at Sea

2. These are models only. They may or may not be appropriate for any particular operation. If used, they must be tailored to the specific circumstances of the operation.

ROE ANNEX TO OPORDER EXAMPLE

ROE ANNEX TO OPORDER FOR OPERATION RESTORE STABILITY *MARITIME INTERDICTION OPERATIONS (MIO)*

References: A. UNSCR XXXX (20XX)
B. Newport ROE Handbook

1. Reference A established sanctions against the State of ALPHA. Military forces participating in OPERATION RESTORE STABILITY have been authorized to use all necessary means to enforce these sanctions.
2. OPERATION RESTORE STABILITY forces will conduct this operation in accordance with References A and B and the ROE implemented in this ROE directive.
3. **Nothing in these ROE negates a commander's right and obligation to take all necessary and appropriate action using all authorized weapon systems in *unit self-defense* of his or her unit and other *Force* units in the vicinity. Nothing in these ROE negates the right of *individual self-defense*. However, when individuals are assigned and acting as part of a unit, unit commanders may limit *individual self-defense* by members of their unit.** (Note: this paragraph must be tailored to reflect national laws and policies.)
4. The following ROE have been authorized for use by the *Force* when conducting *MIO* within the Area of Operations:
 - 10 C** Use of force, up to and including *deadly force* in *individual self-defense* is permitted.
 - 11 C** Use of force, up to and including *deadly force*, in *unit self-defense* of OPERATION RESTORE STABILITY units is permitted.
 - 12 C** Use of force, up to and including *deadly force*, for the defense of persons on boarded vessels is permitted.
 - 23 D** *Warning shots* to compel compliance with UNSCR XXXX is permitted.
 - 24 E** *Disabling fire* to compel compliance with UNSCR XXXX is permitted. AMPL: Commander OPERATION RESTORE STABILITY retains this rule.
 - 55 H** Ordering of diversions and other instructions to ships suspected of operating in breach of UNSCR XXXX is permitted.
 - 93 D** *Compliant boarding* of ships suspected of violating UNSCR XXXX is permitted.
 - 93 G** *Non-compliant boarding* using force up to and including *deadly force* of ships suspected of violating UNSCR XXXX is permitted. AMPL: Commander OPERATION RESTORE STABILITY retains this rule.

93 H *Opposed boarding* using force up to and including *deadly force* of ships suspected of violating UNSCR XXXX is permitted. AMPL: Commander OPERATION RESTORE STABILITY retains this rule.

ROE REQUEST (ROEREQ), ROE AUTHORIZATION (ROEAUTH), AND ROE IMPLEMENTATION (ROEIMP) MESSAGES

2.1 Introduction. The following types of formatted message may be used to request, authorize, or deny ROE:

- a. ROE Request (ROEREQ).
- b. ROE Authorization or denial (ROEAUTH).
- c. ROE Implementation (ROEIMP).

ROEREQ and ROEAUTH messages should contain the entire text of each ROE being requested/authorized. Message formats are provided below. For each operation, each message should be numbered sequentially.

2.2 ROEREQ Messages. ROEREQ messages are used by a commander to seek the implementation, modification, or cancellation of ROE by a superior commander. Any commander in the operational chain of command can originate a ROEREQ. Each ROEREQ must include an explanation of why the ROE are required and the consequences should that ROE not be approved.

2.3 ROEAUTH Messages. ROEAUTH messages are used by the appropriate higher headquarters to authorize or deny ROE. Each message should be numbered sequentially.

2.4 ROEIMP Messages. ROEIMP messages are used by a subordinate commander to control the application of ROE that has been authorized by a higher headquarters. They may contain additional guidance or restrictions or may retain certain ROE that have been authorized by the higher headquarters. They also may implement dormant ROE, which become available only when specified events occur.

2.5 Amplification to ROE. Amplification (AMPL) are instructions contained within a ROEAUTH or ROEIMP message that provide additional information and guidance with respect to one or more of the ROE measures that have been authorized. Clarification for any or all of the ROE within any of these messages may be included in AMPL lines.

2.6 Message Formats. All ROEREQ, ROEAUTH and ROEIMP messages should be numbered sequentially (i.e., ROE REQUEST SERIAL ONE, ROE REQUEST SERIAL TWO, ROE REQUEST SERIAL THREE, etc.) and should include the following paragraphs:

Paragraph 1	Background/justification. An explanation of why the ROE rules are being requested, authorized, or denied.
Paragraph 2	New rules requested or authorized.
Paragraph 3	Previous measures cancelled (if any).
Paragraph 4	Previous measures remaining in force (if any). Paragraph 4 must contain an accurate, up to date list of all authorized rules.

Paragraph 5 Additional remarks (if any). Include risk to task or mission accomplishment and/or other impact on operations if ROEREQ is not approved and any additional information to facilitate informed decision by the authorizing commander.

Each ROE message will contain all appropriate paragraphs so that commanders need only retain the latest message to have the complete current listing of all rules in force for the mission. If it is necessary to request or authorize ROE rules not found in the Compendium, the text of the requested rules should be set out in plain language in paragraph 2 of the ROE message utilizing an unassigned (SPARE) rule number from the most appropriate Series.

Note: There is no requirement to use italics, which are only used in this Handbook to indicate that the italicized terms appear in the Glossary.

2.7 ROEREQ message example:

From Commander OPERATION RESTORE STABILITY (Requesting command)
 To Commander Multinational Forces (Commander with authority to grant request or forward request to *higher authority*)
 Info (Appropriate Information Addressees)
 Subj/ROEREQ Serial One/OPERATION RESTORE STABILITY
 Ref/A/ ROE Annex to OPORD/Operation Restore Stability
 Ref/B/ Newport ROE Handbook

1. Background/justification: BRAVO warships are disrupting operations in relation to ALPHA by harassing *Force* units. BRAVO is allowing smuggling operations to be conducted in its territorial sea in violation of UNSCR XXXX. Current ROE are in Ref A.

2. New rules requested from Ref B:

- 20 D** Use of force, up to and including *deadly force*, to counter force used to interfere with the mission is permitted.
- 50 F** Entry into the territorial sea of BRAVO to disrupt smuggling operations is permitted.

3. Previous rules cancelled: None.

4. Previous rules remaining in force:

- 10 C** Use of force, up to and including *deadly force* in *individual self-defense* is permitted.
- 10 F** Use of force in *individual self-defense* may be limited by a unit commander when an individual is assigned to and acting as a part of that unit.
- 11 C** Use of force, up to and including *deadly force*, in *unit self-defense* of Operation RESTORE STABILITY units is permitted.
- 12C** Use of force, up to and including *deadly force*, for the defense of persons on boarded vessels is permitted.
- 23 D** *Warning shots* to compel compliance with UNSCR XXXX are permitted.
- 24 E** *Disabling fire* to compel compliance with UNSCR XXXX is permitted. AMPL: Commander OPERATION RESTORE STABILITY retains this rule.
- 55 H** Ordering of diversions and other instructions to ships suspected of operating in breach of UNSCR XXXX is permitted.
- 93 D** *Compliant boarding* of ships suspected of violating UNSCR XXXX is permitted.
- 93 G** *Non-compliant boarding* using force up to and including *deadly force* of ships suspected of violating UNSCR XXXX is permitted. AMPL: Commander OPERATION RESTORE STABILITY retains this rule.
- 93 H** *Opposed boarding* using force up to and including *deadly force* of ships suspected of violating UNSCR XXXX is permitted. AMPL: Commander OPERATION RESTORE STABILITY retains this rule.

5. Additional remarks: (E.g., “Request approval of ROE rules 20 D and 50 F to facilitate effective *MIO*. Without these measures the interdiction mission cannot be accomplished because the *Force* will remain unable to respond robustly to BRAVO warships that continue to frustrate mission accomplishment.”)

2.8 ROEAUTH message example:

From Commander Multinational Force (Commander with authority to grant request or forward request to *higher authority*)

To Commander Operation Restore Stability (Requesting command)

Info (appropriate information addressees)

Subj/ROEAUTH Serial One/Operation Restore Stability

Ref/A/ Commander Operation Restore Stability ROEREQ Serial One

1. Background/justification: Reference A requested new ROE measures to counter BRAVO interference with *MIO operations*. Rule 20 D is authorized. Rule 50 F is not authorized.

2. New rule authorized:

20 D Use of force, up to and including *deadly force*, to counter force used to interfere with the mission is permitted.

3. Previous rules cancelled: None.

4. Previous rules remaining in force:

10 C Use of force, up to and including *deadly force* in *individual self-defense* is permitted.

10 F Use of force in *individual self-defense* may be limited by a unit commander when an individual is assigned to and acting as a part of that unit.

11 C Use of force, up to and including *deadly force*, in *unit self-defense* of OPERATION RESTORE STABILITY units is permitted.

12C Use of force, up to and including *deadly force*, for the of persons on boarded vessels is permitted.

23 D *Warning shots* to compel compliance with UNSCR XXXX are permitted.

24 E *Disabling fire* to compel compliance with UNSCR XXXX is permitted. AMPL: Commander OPERATION RESTORE STABILITY retains this rule.

55 H Ordering of diversions and other instructions to ships suspected of operating in breach of UNSCR XXXX is permitted.

93 D *Compliant boarding* of ships suspected of violating UNSCR XXXX is permitted.

93 G *Non-compliant boarding* using force up to and including *deadly force* of ships suspected of violating UNSCR XXXX is permitted. AMPL: Commander OPERATION RESTORE STABILITY retains this rule.

93 H *Opposed boarding* using force up to and including *deadly force* of ships suspected of violating UNSCR XXXX is permitted. AMPL: Commander OPERATION RESTORE STABILITY retains this rule.

5. Additional remarks:

50 F (Entry into the territorial sea of BRAVO to disrupt smuggling operations is permitted) is NOT authorized at this time due to pending diplomatic action by the UN Secretary General.

2.9 ROEIMP message example:

From Commander Operation Restore Stability To Combined Task Force Restore Stability Info (appropriate information addressees) Subj/ROEAUTH Serial One/Operation Restore Stability Ref/A/ Commander Operation Restore Stability ROEREQ Serial One Ref/B/ Commander Multinational Force ROEAUTH Serial One 1. Background/justification: Reference A requested new ROE measures to counter BRAVO interference with <i>maritime interdiction operations (MIO)</i>. Reference B responded to that request. Measure 20 D is authorized. Measure 50 F is not authorized. 2. New rule authorized: 20 D Use of force, up to and including <i>deadly force</i>, to counter force used to interfere with the mission is permitted. 3. Previous rules cancelled: None. 4. Previous rules remaining in force: 10 C Use of force, up to and including <i>deadly force</i> in <i>individual self-defense</i> is permitted. 10 F Use of force in <i>individual self-defense</i> may be limited by a unit commander when an individual is assigned to and acting as a part of that unit. 11 C Use of force, up to and including <i>deadly force</i>, in <i>unit self-defense</i> of Operation RESTORE STABILITY units is permitted. 12 C Use of force, up to and including <i>deadly force</i>, for the of persons on boarded vessels is permitted. 23 D <i>Warning shots</i> to compel compliance with UNSCR XXXX are permitted. 24 E <i>Disabling fire</i> to compel compliance with UNSCR XXXX is permitted. AMPL: Commander Operation Restore Stability retains this rule. 55 H Ordering of diversions and other instructions to ships suspected of operating in breach of UNSCR XXXX is permitted. 93 D <i>Compliant boarding</i> of ships suspected of violating UNSCR XXXX is permitted. 93 G <i>Non-compliant boarding</i> using force up to and including <i>deadly force</i> of ships suspected of violating UNSCR XXXX is permitted. AMPL: Commander OPERATION RESTORE STABILITY retains this rule. 93 H <i>Opposed boarding</i> using force up to and including <i>deadly force</i> of ships suspected of violating UNSCR XXXX is permitted. AMPL: Commander OPERATION RESTORE STABILITY retains this rule 5. Additional remarks: 50 F (Entry into the territorial sea of BRAVO to disrupt smuggling operations is permitted) is NOT authorized at this time due to pending diplomatic action by the UN Secretary General.
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ROE MATRICES FOR MULTINATIONAL OPERATIONS

3.1 An ROE matrix provides a summary of the ROE rules in effect for each State in a multinational force. The matrix provides a quick reference for planners and commanders in determining which unit or units may engage in specific actions and which actions a State will not conduct (also known as "caveats").

3.2 This Appendix provides a model matrix for *maritime interdiction operations*. Four participating States (A, B, C, and D) are listed at the top of the matrix. ROE series are listed on the left side. A block with the word "YES" indicates the State's unit has the ROE rule available. A block with a footnoted "YES" indicates the State's unit has the ROE rule available, but with some limit or qualification listed in the footnote. A block with "NO" indicates the ROE rule is not available.

ROE MATRIX EXAMPLE

Rule	ROE	State A	State B	State C	State D
11 A	<i>Unit self-defense</i> of other States' units	YES	YES	YES	YES (1)
23 A	<i>Warning shots</i>	YES (1)	YES	NO	YES
24 C	<i>Disabling fire</i>	YES (1)	NO	NO	YES
25 B/J	Search and detention of persons	YES (1)	NO	NO	YES (1)
93 B	<i>Compliant boarding</i>	NO	NO	NO	YES
93 E	<i>Non-compliant boarding</i>	NO	NO	NO	YES (2)
93 H	<i>Opposed boarding</i>	NO	NO	NO	YES (2)(3)

1. Only with permission from *higher authority*.
2. Only if (SPECIFY condition).
3. Only if low threat of resistance.

ROE CARDS

4.1 In general, ROE cards (sometimes referred to as soldiers' cards) provide summaries of the key ROE principles regulating the use of force by individuals for a particular mission. They are not a substitute for training.

4.2 ROE cards must be concise and easy to understand.

4.3 ROE card examples are provided for three situations:

- a. *Self-defense*
- b. *Peace Operations*, and
- c. Armed Conflict, including a code of conduct.

4.4 The use of force in *self-defense* by individuals is governed by the domestic law and regulations of their States. Cards issued to individuals must not authorize the use of force beyond that permitted by their domestic law. Outside of international armed conflict situations, the extent to which the law of the *host nation* or territorial State will or will not apply to *Force* actions is generally determined by any relevant SOFA.

SELF-DEFENSE CARD EXAMPLE

NOTHING IN YOUR ROE LIMITS YOUR RIGHT TO TAKE ACTION IN *SELF-DEFENSE*.

USE OF FORCE IN *SELF-DEFENSE*

1. You have the right to use force only in *self-defense*.
2. You may use force, up to and including *deadly force*, in response to a *hostile act* or *hostile intent* directed against:
 - You
 - Members of your unit
 - (SPECIFY other individuals) (**Note:** See ROE Group 10–19)
3. A warning is to be given before opening fire in *self-defense*, if time and circumstances permit.
4. You are to warn by shouting: (SPECIFY e.g., “STOP OR I WILL FIRE”). (**Note:** The local language should be used.)

USE OF FORCE

5. If you have to open fire, you must:
 - Fire only aimed shots
 - AND**
 - Use no more force than is necessary to *neutralize* the threat
 - AND**
 - Take all reasonable precautions not to injure anyone other than your target

PEACE OPERATIONS CARD EXAMPLE**NOTHING IN YOUR ROE LIMITS YOUR RIGHT TO TAKE ACTION IN *SELF-DEFENSE*.****MISSION**

1. Your Mission is (SPECIFY).

USE OF FORCE IN *SELF-DEFENSE*

2. You have the right to use force in *self-defense*.
3. You may use force, up to and including *deadly force*, in response to a *hostile act* or *hostile intent* directed against:
 - You
 - Members of your unit
 - (SPECIFY other individuals) (**Note:** See ROE Group 10–19)
4. You may use necessary and proportional force, up to and including *deadly force*, in order to:
 - (SPECIFY task)
5. A warning is to be given before opening fire *in self-defense*, if time and circumstances permit.
6. You are to warn by shouting: (SPECIFY e.g., “STOP OR I WILL FIRE”).

USE OF FORCE

7. If you have to open fire, you must:
 - Fire only aimed shots
 - AND**
 - Use no more force than is necessary to *neutralize* the threat
 - AND**
 - Take all reasonable precautions not to injure anyone other than your target.

ARMED CONFLICT CARD EXAMPLE

NOTHING IN YOUR ROE LIMITS YOUR RIGHT TO TAKE ACTION IN *SELF-DEFENSE*.

MISSION

1. Your Mission is (SPECIFY).
2. You have the right to use force both in *self-defense* and against the enemy.

USE OF FORCE IN *SELF-DEFENSE*

3. You have the right to use force in *self-defense* at all times.
4. You may use force, up to and including *deadly force*, in response to a *hostile act* or *hostile intent* directed against you, members of your unit, and (SPECIFY other individuals).
(**Note:** See ROE Group 10–19.)
5. A warning is to be given before opening fire in *self-defense*, if time and circumstances permit.
6. You are to warn by shouting: (SPECIFY e.g., “STOP OR I WILL FIRE”).
7. If you have to open fire, you must:
 - Fire only aimed shots
 - AND**
 - Use no more force than is necessary to *neutralize* the threat
 - AND**
 - Take all reasonable precautions not to injure anyone other than your target.

USE OF FORCE AGAINST THE ENEMY

8. Within (SPECIFY area), the following may be *attacked*:
 - (SPECIFY *military objectives* and *declared hostile forces*) (**Note:** See ROE Group 30–39).
9. *Positive identification (PID)* is required prior to engagement. *PID* is the reasonable certainty that an object of *attack* is a legitimate military target in accordance with the law of armed conflict and applicable ROE.
10. Minimize incidental injury or death of civilians and collateral damage to civilian objects.

CODE OF CONDUCT (reverse side of model armed conflict card)

1. Comply with the law of armed conflict and report suspected breaches to your superiors.
2. Do not *attack* those who surrender. Turn them over to your superiors.
3. Treat all detainees humanely.
4. Collect and care for all wounded, sick, and shipwrecked.
5. Respect civilians and their property.
6. Do not take war trophies.

MARITIME WARNING ZONE AND NO FLY ZONE ANNOUNCEMENTS

5.1 Properly established and appropriately implemented *maritime warning* zones and *no-fly zones* provide operational commanders with the means to enhance the *self-defense* and *force protection* posture of their assets, with the means to announce potential hazards to other users of maritime and air space in the area of operations, such zones can also facilitate mission accomplishment. However used, zones cannot and do not absolve commanders of their responsibility for the safety of the forces they command or for their duty to comply with LOAC and other rules of international law.

5.2 *Maritime warning zones* and *no-fly zones* are typically announced through a Notice to Mariners (NOTMAR), Notice to Airmen (NOTAM), Special Warnings, or similar announcements.

5.3 Model announcements are provided for three types of zones:

- a. *Warning Area* in *International Waters*.
- b. *Warning Area* and *Exclusion Zone* in the Territorial Sea.
- c. *No-Fly Zone*

5.4 Where the term “(SPECIFY)” is included, detail must be inserted to clarify the meaning of the provision.

ANNOUNCEMENT—*WARNING AREA* EXAMPLE (See note below)

1. Due to (SPECIFY event or circumstances), (SPECIFY forces) are operating at a heightened state of readiness and taking additional defensive precautions against (SPECIFY threat). Consequently, all aircraft, surface vessels, and subsurface vessels approaching (SPECIFY object, e.g., oil platform, warship) are requested to maintain radio contact with (SPECIFY force) on bridge-to-bridge channel 16, international air distress (121.5 MHz VHF) or military air distress (243.0 MHz UHF).
2. (SPECIFY force) will take appropriate measures in *self-defense* if warranted by the circumstances. Aircraft, surface vessels, and subsurface vessels approaching (SPECIFY force) will, by making prior contact as described above, help make their intentions clear.
3. (SPECIFY force), when operating in confined waters, shall remain mindful of navigational considerations of aircraft, surface vessels, and subsurface vessels in their immediate vicinity.
4. Nothing in this warning is intended to impede or otherwise interfere with the freedom of navigation or overflight of any vessel or aircraft, or to limit or expand the right of *self-defense* of (SPECIFY force). This warning is published solely to advise of the heightened state of readiness of (SPECIFY force) and to request that radio contact be maintained as outlined above.

Note: These announcements are often made in Notice to Mariners (NOTMAR), Notice to Airmen (NOTAM), Special Warning, or other warning systems.

ANNOUNCEMENT EXAMPLE—*WARNING AREA* AND *EXCLUSION ZONE* IN THE TERRITORIAL SEA

1. A *warning area* and an *exclusion zone*, as described below, are established due to (SPECIFY event that led to the declaration of the zones).
2. All mariners are advised to remain clear of (SPECIFY forces) and to identify themselves and make their intentions known when operating in the vicinity of (SPECIFY forces). If queried, mariners should clearly identify themselves and state their intentions and if given directions from (SPECIFY forces), they should promptly execute such directions to make their intentions known. Mariners are reminded that (SPECIFY forces) are prepared to take defensive measures, including, if necessary, the use of *deadly force*, against any contact whose identity or intentions are unknown, and which poses a threat.
3. Effective immediately, a *warning area* is established around (SPECIFY geographic coordinates).
4. The *warning area* extends (SPECIFY distance) from (SPECIFY point). This *warning area* is distinct from and in addition to, the *exclusion zone* established later in this announcement.
5. Vessels are advised to remain clear of the *warning area* for all but essential transits. If transit requires entry into the zone, vessels are advised to contact (SPECIFY contact) via marine VHF channel 16, identify themselves and make transit intentions known. If (SPECIFY forces) advise a vessel to depart the *warning area*, the vessel should immediately depart. Such direction will be given only when necessary to keep the vessel from standing into danger.
6. Additionally, effective immediately, an *exclusion zone* is established, and the right of innocent passage is temporarily suspended in accordance with international law around (SPECIFY geographic coordinates) within (SPECIFY territorial sea). The *exclusion zone* extends (SPECIFY distance) from (SPECIFY point).
7. Only (SPECIFY vessels) and (SPECIFY forces) are allowed to enter the *exclusion zone*. Vessels attempting to enter the zone without authorization may be subject to defensive measures, including, when necessary, the use of *deadly force*. All reasonable efforts will be taken to warn vessels away before employing *deadly force*. However, *deadly force* will be employed when necessary.
8. Questions regarding this advisory may be directed to (SPECIFY point of contact and contact information).

ANNOUNCEMENT EXAMPLE—NO FLY ZONE

1. Coalition forces are conducting military operations in support of (SPECIFY mission). In support of that mission and in accordance with (SPECIFY authority) a No Fly Zone has been created and promulgated by (SPECIFY NOTAM or other notice).
2. No aircraft shall operate or be permitted to operate in the (SPECIFY area of operations or airspace) without the approval of (SPECIFY authority and contact information).
3. The above prohibition shall not apply to flights whose sole purpose is of a humanitarian nature and which have been approved by (SPECIFY authority) to transit through established transit corridors.
4. To better enable coalition forces to identify civil aircraft, all civil aircraft approaching, flying within, or entering the affected area should continuously monitor one or both international emergency frequencies (VHF 121.5 MHz and/or UHF 243.0 MHz).
5. If circumstances permit, unidentified aircraft and/or aircraft whose intentions are unknown to coalition forces will be contacted using the English language on VHF 121.5 MHz or UHF 243.0 MHz and requested to identify themselves and to state their intentions. Those aircraft should be prepared to comply with heading and/or altitude changes recommended by coalition forces.

REQUESTS FOR IDENTIFICATION AND WARNINGS

6.1 Where time and circumstances permit, forces or individuals presenting a possible threat should be queried or warned and given the opportunity to withdraw or otherwise cease threatening actions. This appendix provides examples of language for use in issuing such queries and warnings.

6.2 Failure to respond to warnings may be considered as evidence of *hostile intent*.

6.3 In the maritime and air environments, requests for identification and warnings to aircraft are generally communicated via Military Air Distress (243 MHZ) and International Air Distress (121.5 MHZ) circuits. Warnings to surface ships are generally transmitted via Channel 16 bridge-to-bridge circuit.

6.4 Land operations examples:

“(SPECIFY identity)! Stop or I will fire!”

“Attention! Unless you disperse/stop, I will use a (SPECIFY device) against you.”

6.5 Air operations examples:

Safety of Flight Advisory: “Unidentified air contact (at SPECIFY position and IFF squawking SSR/call sign number____), at (SPECIFY altitude), this is (SPECIFY State) (SPECIFY ship or military aircraft). We are conducting flight operations. Request you remain clear at a safe distance from my unit.”

Query: “Unidentified air contact (at SPECIFY position and IFF squawking SSR/call sign number____), at (SPECIFY altitude), you are approaching a (SPECIFY State, territorial sea, or other sovereign territory) (SPECIFY ship or military aircraft or dangerous area). Request you establish communications, identify yourself, and state your intentions.”

Warning: “Unidentified (use identity if known) air contact (at SPECIFY position and squawking SSR/call sign number____), at (SPECIFY altitude), (SPECIFY course), and (SPECIFY speed), you are approaching a (SPECIFY ship, military aircraft, sovereign territory, or dangerous area). Your (identity is unknown and/or your intentions are not clear). You are standing into danger. Request you establish communications now or alter course immediately to (SPECIFY course) to remain clear.”

6.6 Maritime examples:

Query: “Attention, unidentified surface (or submerged) contact (SPECIFY position), you are approaching a (SPECIFY State) ship or dangerous area. Request you establish communications, identify yourself, and state your intentions.”

Warning: “Unidentified (use identity if known) surface (or submerged) contact (at SPECIFY position and/or IFF squawk), at (SPECIFY course), and (SPECIFY speed), you are approaching a (SPECIFY ship or military aircraft or dangerous area). Your (identity is unknown and/or your intentions are not clear). You are standing into danger. Request you establish communications now or alter course immediately to (SPECIFY course) to remain clear.”

RESPONSES TO QUERIES, WARNINGS, AND CHALLENGES AT SEA

7.1 This Appendix provides model responses to queries or challenges received by warships and military aircraft in the maritime environment.

7.2 As a general rule, military units are authorized by national authorities to provide limited information in response to challenges or queries from foreign warships and military aircraft. Hull or side number, and course and speed are usually provided. Ship or aircraft type, name, previous ports of call, destination, current operations, and other information not related to the safe transit of the unit are not usually provided.

7.3 Suggested language for a response to a challenge:

- a. First part of the response should include “This is (SPECIFY nationality) warship (or military aircraft) (SPECIFY number).”
- b. Second part of the response depends on the location and transit mode of the unit. Options include:
 - “I am conducting routine operations in *international waters*.”
 - “I am engaged in innocent passage.”
 - “I am engaged in transit passage.”
 - “I am engaged in archipelagic sea lanes passage.”
- c. If asked for information not authorized for disclosure, the following response is suggested: “This is (SPECIFY nationality) warship (or military aircraft) (SPECIFY number). I am not authorized to provide that information.”

GLOSSARY

active cyber defense the taking of protective defensive measures outside the defended cyber infrastructure. See also *passive cyber defense*.

anti-personnel mine a land mine designed to be exploded by the presence, proximity, or contact of a person and that will incapacitate injure or kill one or more persons. Mines designed to be detonated by the presence, proximity, or contact of a vehicle (as opposed to a person) that are equipped with anti-handling devices, are not considered *anti-personnel mines* as a result of being so equipped.

armed naval mine a *naval mine* laid either with all safety devices withdrawn or armed when laid so as to detonate when pre-set conditions are met.

assistance entry the entry into the territorial sea or archipelagic waters by *ships* or aircraft without permission of the coastal State to engage in bona fide efforts to render emergency assistance to those in danger or distress at sea. This right applies only when the location of the danger or distress is reasonably well known. It does not extend to a search, which requires the consent of the coastal State.

attack acts of violence, including *cyber attacks*, and *electronic attacks* in which there is a reasonable expectation that death, bodily harm, or damage to property may occur, and/or that the enemy will suffer a neutralization, degradation, or interruption to a vital operational capability.

autonomous weapon system a weapon system that, once activated, can select and engage targets without further intervention by a human operator. This includes *human-supervised autonomous weapon systems* that are designed to allow human operators to override operation of the weapon system, but which can select and engage targets without further human input after activation.

auxiliary vessel a vessel either owned by or under the exclusive control of the armed forces of a State and used for the time being on government non-commercial service in support of the armed forces. The ship may be manned entirely by civilians and is neither a warship nor a merchant vessel.

cluster munition in general, a conventional munition that is designed to disperse or release explosive submunitions with lethal effect. National definitions vary depending upon national policy and treaty obligations.

collective self-defense the defense of another State, its persons, forces, and/or property.

compliant boarding a boarding where all of the following conditions are met: (a) Suspect vessel complies with the directions of the on-scene commander (OSC); (b) No apparent passive or active resistance measures are employed; (c) No intelligence available to indicate a threat.

controlled naval mine a *naval mine* with no destructive capability until affirmatively activated by some form of arming order (whereupon they become *armed naval mines*).

cyber attack a *cyber operation*, whether offensive or defensive, in which there is a reasonable expectation that death, bodily harm, or damage to or destruction of property may occur. (**Note:** There is not yet a consensus regarding whether temporary interference with functionality or data meets the “damage” definition of the term *cyber attack*.)

cyber operation the employment of cyber capabilities to achieve objectives in or through *cyberspace*.

cyberspace a global domain within the *information environment* consisting of the interdependent networks of information technology infrastructures, and resident data, including the Internet, telecommunications networks, computer systems, and embedded processors and controllers.

cyberspace exploitation actions taken in cyberspace to gain intelligence, maneuver, collect information, or perform other enabling actions required to prepare for future military operations.

cyberspace operations an *IO* tool that involves the employment of cyber capabilities where the primary purpose is to achieve objectives in or by the use of *cyberspace*.

cyberspace security actions taken within protected *cyberspace* to prevent unauthorized access to, exploitation of, or damage to computers, electronic communications systems, and other information technology, including platform information technology, as well as the information contained therein, to ensure its availability, integrity, authentication, confidentiality, and nonrepudiation.

deadly force force intended or likely to cause death or serious injury, regardless of whether death or serious injury results.

declared hostile force(s) any person(s) or force(s), whether State or non-State actors, that has been declared hostile by *higher authority*. Once a force is declared hostile, the *Force* operating under the *ROE* need not observe a *hostile act* or *hostile intent* before engaging the person or force.

direct fire fire directed at a target that is visible to the aimer. The target itself is used as a point of aim for either the weapon or the director.

directed energy weapon a weapon or system that uses highly focused or *directed energy*, such as lasers, microwaves, and particle beams, to incapacitate, damage, or destroy enemy equipment, facilities, and/or personnel.

disabling fire fire directed at a vessel, aircraft, or vehicle to impair its maneuverability but not its survival.

electronic attack (EA) a component of *electronic warfare* involving the use of electromagnetic energy, *directed energy*, or antiradiation weapons to *attack* personnel, facilities, or equipment with the intent of degrading, neutralizing, or destroying enemy combat capability.

electronic warfare (EW) any military action involving the use of electromagnetic and *directed energy* to control the electromagnetic spectrum, to protect personnel, facilities, and equipment, or to *attack* the enemy. See also *directed energy* and *electronic attack*.

escalation of force (EOF) sequential actions that begin with *non-deadly force* measures and may graduate to *deadly force* measures. *EOF* procedures are designed to avoid unjustifiable use of force and may assist in the determination of *hostile intent*.

exclusion zone a zone established by a sanctioning body to prohibit specific activities in a specific geographic area. See also *maritime warning zone* and *warning area*.

Force the military unit(s) or organization(s) operating under these rules of engagement. For purposes of *self-defense*, *Force* includes persons accompanying the *Force*, prisoners of war, internees, and detainees under the control of the *Force*.

force protection actions taken to prevent or mitigate hostile actions against personnel (to include family members), resources, facilities, and critical information. *Force protection* does not include actions to defeat the enemy or protect against accidents, weather, or disease.

harassment a calculated act of a provocative nature designed to inconvenience, disrupt, or alarm, and which falls short of *hostile intent* or a *hostile act*.

higher authority authority within a State that is senior to the commander of the *Force* and/or units of the *Force*.

hors de combat a person who: (1) is in the power of an adverse party; (2) clearly expresses an intention to surrender; or (3) has been rendered unconscious or is otherwise incapacitated by wounds or sickness, or having been shipwrecked, and therefore is incapable of defending himself or herself; provided that in any of these cases the person abstains from hostilities and does not try to escape.

host nation a State that receives with its consent the forces and/or supplies of allied States, and/or coalition partners, to be located on, to operate in, or to transit through its territory.

hostile act an unlawful *attack* or other use of force against a State, the *Force* or other designated persons or property. A *hostile act* includes traditional uses of force, such as the firing of weapons. It also includes the taking of hostages or the holding of hostages against their will. It does not include “*harassment*.” **Note:** in this Handbook, the concept of *hostile act* is employed in relation to use of force in the context of *self-defense*. In some ROE systems, the concept of *hostile act* is employed in relation to LOAC-based authorizations for use of force (for example, in attack rules) rather than in relation to *self-defense*.

hostile intent the threat of an imminent *hostile act*. **Note:** in this Handbook, the concept of *hostile intent* is employed in relation to use of force in the context of *self-defense*. In some ROE systems, the concept of *hostile intent* is employed in relation to LOAC-based authorizations for use of force (for example, in attack rules) rather than in relation to *self-defense*.

human-supervised autonomous weapon system an autonomous weapon system that is designed to provide human operators with the ability to intervene and terminate engagement.

illumination the process of adding infrared or visible light to the zone of action by various means, including, but not limited to light devices (e.g., search light), thermal imagery, laser, pyrotechnic, flare, etc. for a variety of purposes, including, but not limited to, targeting and improving visibility. For the purposes of this Handbook, *illumination* also means the use of a fire control radar to generate a firing solution.

indirect fire directed at a target that cannot be seen by the aimer and that is not itself used as a point of aim for the weapons or the director. *Indirect fire* includes *observed indirect fire* and *unobserved indirect fire*.

individual self-defense the right of an individual to defend himself or herself using all authorized weapon systems from *hostile act* or *hostile intent*.

information environment the aggregate of individuals, organizations, and systems that collect, process, disseminate, or act on information.

information operations (IO) the integrated employment, during military operations, of information-related capabilities in concert with other lines of operation to influence, disrupt, corrupt, or usurp the decision-making of adversaries and potential adversaries while protecting own capabilities. *IO* tools include, but are not limited, to *cyberspace operations* (including *cyber attacks*), *electronic warfare*, *military deception*, *military information support operations*, and *operations security*.

interception of civil aircraft an operation by which military aircraft make contact with civil aircraft with a view towards either verifying its destination, character, or function, forcing the aircraft to land for inspection, or to divert the aircraft from its destination.

international airspace areas of airspace not subject to the sovereignty of a State, including airspace over the contiguous zone, the exclusive economic zone, the high seas, and other territories not subject to national sovereignty.

international waters all ocean areas not subject to the sovereignty of a State. All waters seaward from the territorial sea are *international waters* in which high seas freedoms of navigation and overflight are reserved to the international community. *International waters* include contiguous zones, exclusive economic zones, and high seas.

joint activities, operations organizations, etc. in which two or more armed services participate.

maritime interdiction operations operations to enforce restrictions on the movement of persons/material on and over the maritime environment within a defined geographical area.

maritime security operations all maritime operations that are not conducted under LOAC-based authorizations, including *maritime interdiction operations*, counter-piracy operations, maritime law enforcement operations, and UNSC sanctions enforcement operations.

maritime warning zone a designated ocean area and superjacent air space in which a State purports to restrict or otherwise limit the freedom of navigation and/or overflight of other users or otherwise impacts the exercise of those freedoms. See also *exclusion zone* and *warning area*, which are types of *maritime warning zones*.

marking to maintain contact of a target from such a position that the *marking* unit or *marker* has an immediate offensive capability.

military deception (MILDEC) an *IO* tool that involves actions executed to mislead deliberately adversary military, paramilitary, or violent extremist organization decision makers, thereby causing the adversary to take specific actions (or inactions) that will contribute to the accomplishment of the friendly *Force's* mission.

military information support operation (MISO) an *IO* tool that involves planned operations to convey selected information and indicators to audiences to influence their emotions, motives, objective reasoning, and the behavior of governments, organizations, groups, and individuals of States not a part of the *Force*. (Formerly “psychological operation”)

military objective under LOAC, *military objectives* are limited to those objects which by their nature, location, purpose, or use make an effective contribution to military action and whose total or partial destruction, capture, or neutralization, in the circumstances at the time, offers a definite military advantage.

national airspace airspace above the territory, internal waters, territorial sea, and archipelagic waters of States.

national self-defense the defense of a State, a State's forces, and a State's persons and their property. Generally, unit commanders may exercise the right of *national self-defense* only when authorized by *higher authority*.

national waters waters subject to the territorial sovereignty of coastal States. *National waters* include only internal waters, territorial seas, and archipelagic waters.

naval mine an explosive device laid in the water, on the seabed, or in the subsoil thereof, with the intention of damaging or sinking ships or of deterring ships from entering an area.

neutralize to render ineffective, either temporarily or permanently.

no-fly zone a territory or an area over which aircraft are not permitted to fly or may fly only with the permission of the authority enforcing the zone.

non-combatant evacuation operations (NEO) operations directed by national authority whereby non-combatants are evacuated from foreign States to safe havens when their lives are endangered by war, civil unrest, or natural disaster.

non-compliant boarding a boarding where available intelligence does not indicate a specific threat, but the vessel employs active or passive measures to prevent and/or impede the boarding phase of the operation, and any or all of the following conditions are met: (a) The vessel fails to comply with on-scene commander (OSC) directions; (b) Passive measures in place are intended to delay, impede, complicate, and/or deter access to spaces required for control of the vessel, but measures can be overcome by mechanical means; (c) Passive resistance measures in place are intended only to delay, impede, complicate, and/or deter search and seizure of suspect vessel and can be overcome by mechanical means.

non-deadly force force not intended or likely to cause death, or serious injury.

non-disabling fire fire directed at a non-vital part of a vessel so as not to impair its seaworthiness and maneuverability.

no-strike list a list of objects or entities protected from the effects of military operations under the law of armed conflict and/or rules of engagement.

observed indirect fire *indirect fire* for which the point of impact or burst can be seen by an observer. The fire can be controlled and adjusted on the basis of observation.

operations security (OPSEC) an *IO* tool that involves a process designed to mitigate risks associated with specific vulnerabilities in order to deny critical information to the adversary.

opposed boarding a boarding where any or all of the following conditions are met: (a) Active or passive resistance measures are in place and clearly intended to inflict serious bodily harm or death to the boarding team; (b) The suspect vessel has demonstrated intent to actively oppose the boarding by inflicting serious bodily harm or using *deadly force* against the boarding team; (c) Intelligence indicates a known threat to inflict serious bodily harm or death to the boarding team; (d) Any demonstration of hostile action, including the threatening display of weapons.

outer space the region that begins at the undefined upper limit of *national airspace* and extends ever outwards from there. International law recognizes freedom of transit by man-made satellites and other objects at earth orbiting altitude and beyond.

passive cyber defense the taking of measures for detecting and mitigating cyber intrusions and the effects of cyber operations that does not involve launching a preventive, pre-emptive, or counter-operations against the source. Examples of passive cyber defense measures are firewalls, patches, anti-virus software, and digital forensics tools. See also *active cyber defense*.

peace operations a broad term that encompasses conflict prevention, peace building, peacekeeping, peace making and peace enforcement operations conducted in support of efforts to establish or maintain peace.

perfidy acts of deception designed to invite the confidence of the enemy to believe that protected status under the law of armed conflict must be accorded, with the intent to betray that confidence. LOAC prohibits the use of perfidy to kill, wound, or capture an enemy. Feigning surrender in order to lure the enemy into a trap is one example of an act of *perfidy*. National LOAC manuals should be consulted for more detailed definitions and examples.

piracy an illegal act of violence, depredation (e.g., plundering, robbing, or pillaging), or detention in or over *international waters* committed for private ends by the crew or passengers of a private ship or aircraft against another ship or aircraft or against persons or property on board such ship or aircraft.

positive identification (PID) a reasonable certainty that an object of *attack* is a legitimate military target in accordance with the law of armed conflict and applicable ROE.

precision-guided munitions (PGMs) an array of weapons that use precision-guided technology to hit targets more precisely, with the intention of causing less collateral damage than non-*precision-guided munitions*—sometimes referred to as “smart” munitions.”

private military and security company (PMSC) business entity that provides military and/or security services, including, but not limited to, protection of persons and objects, maintenance and operation of weapons systems, prisoner detention, and advice or training of local forces and security personnel.

restricted target list a list of valid targets that have specific restrictions placed on the actions authorized against them due to operational considerations.

self-defense the use of necessary and proportional force, including *deadly force*, to defend forces, personnel, or property against *attack* or imminent *attack*.

semi-autonomous weapon system a weapon system that, once activated, is intended to only engage individual targets or specific target groups that have been selected by a human operator.

serious crime murder, rape, aggravated assault, armed robbery, abduction, or any other crime that could reasonably be expected to cause death or serious bodily harm.

shadowing observing and (not necessarily continuously) maintaining contact with an object. *Shadowing* may be carried out either overtly or covertly.

sonic weapons weapons that use sound to injure, disorient, incapacitate, or *neutralize* an opponent.

status of forces agreement (SOFA) an agreement that defines the legal position of a visiting military force deployed in the territory of another State.

tactical questioning the field-expedient initial questioning for information of immediate tactical value of a captured or detained person at or near the point of capture and before the individual is placed in a detention facility.

unit self-defense the right of unit commanders to defend their unit, other units of their State, and other specified units against *hostile act* or *hostile intent*. *Unit self-defense* is an operational concept. It is a collective application of *individual self-defense*, defense of others, and *collective self-defense*. Additionally, for some states, *unit self-defense* implements an obligation for commanders to defend their units.

unobserved indirect fire *indirect fire* for which points of impact or burst are not observed.

warning area an announcement that provides notice of potential hazards at sea, such as weapons testing, exercises, combat, or other operations. See also *exclusion zone* and *maritime warning zone*.

warning shot a shot fired in the vicinity of a person, vessel, or aircraft as a signal to immediately cease activity or comply with other instructions, but not intended to cause damage or injury.

warning signal a warning of a potential hazard.

ROE HANDBOOK AFTER ACTION REPORT (AAR)

Handbook users and reviewers are requested to submit an AAR after use or review of the Handbook. Please email AARs to the U.S. Naval War College's Stockton Center at StocktonCenter@usnwc.edu and the Handbook's project coordinator, Dennis Mandsager, at dennis.mandsager@gmail.com.

The following items are suggested for inclusion in the AAR.

- Name, position, and contact information (email, telephone, and mail address) for person submitting report.
- Occasion for use of the Handbook (exercise, war game, training, etc.).
- Handbook issues identified or other need for revision or addition.
- Suggestions for improvement of the Handbook (additional ROE measures, changes to current measures, etc.) and rationale. (Include proposed text if possible.)
- Other comments, as necessary.